

BEFORE THE FEDERAL MARITIME COMMISSION

MCS INDUSTRIES, INC.,

Complainant

v.

COSCO SHIPPING LINES CO., LTD. AND

MSC MEDITERRANEAN SHIPPING COMPANY S.A.,

Respondents.

DOCKET NO. 21-05

**RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY S.A.'S
MOTION FOR CONFIDENTIAL TREATMENT**

Respondent MSC Mediterranean Shipping Company S.A. (“MSC”) respectfully moves for confidential treatment of the non-public version of the Attachment and Exhibits to MSC’s Opposition to Motion to Compel,¹ pursuant to Rule 5(b) of the Federal Maritime Commission’s Rules of Practice and Procedure, 46 C.F.R. § 502.5(b).

MSC requests confidential treatment of the following information included in the Attachment and Exhibits to MSC’s Opposition to Motion to Compel:

- 1) Attachment - Cited Pages from Master Deposition, Page 106: lines 24-25;
- 2) Attachment - Cited Pages from Master Deposition, Page 107: one word, line 9.
- 3) Exhibit “E”: rates quoted by MSC to Complainant, under Images #9 and #10.

¹ MSC filed its Opposition to MCS’s Motion to Compel along with the Attachment and Exhibits that are the subject of this Motion on November 29, 2021, asking that the filing be treated as confidential and not placed on the public docket for a short period of time, to allow the parties to discuss confidentiality designations, particularly as to excerpts from the deposition of Complainant’s Chief Executive Officer. This process has been completed, allowing MSC to file Motion for Confidentiality Treatment and a public version of the filing now.

- 4) Exhibit “I”: rates quoted by MSC to Complaint on pages MSC_0001933, MSC_0001986.

Good cause exists for the confidential treatment of the above information, as it is subject to the Confidentiality Stipulation and Protective Order entered by Your Honor on November 18, 2021, and has been designated by the parties in good faith as confidential. As to the exhibits, rate negotiation information is highly sensitive commercial data, the disclosure of which would cause competitive and financial harm if it became public. As to the deposition excerpts, Complainant has designated the identities of other carriers with which Complainant has contracted, along with testimony as to how those carriers have performed, as confidential due to Complainant’s confidentiality obligations to those carriers under their respective contractual agreements.

In addition to the above information sought to be treated as confidential, MSC lists for ready reference the following minor corrections to the public version of the Attachment and Exhibits to MSC’s Opposition to Motion to Compel, which are included in the new confidential version also being filed herewith:

- 1) Attachment - Cited Pages from Master Deposition, Page 60: part of the page was blanked out as it was not in the portion of the transcript cited.
- 2) Exhibit “H”: Respondent has added in red font a translation from Chinese to English on page MSC_0002373, to reflect the meaning of the content for which the email has been cited;
- 3) Exhibit “I”: the email excerpts in the original Exhibit “I” have been replaced with full email strings beginning with Bates-labels MSC_0001930 and MSC_0001985. Respondent does not believe the newly-added pages are material to the purpose for

which for which Exhibit “I” was included, but has agreed to provide them at the request of Complainant’s counsel in the interest of completeness.

Pursuant to Rule 502.5(b), MSC is providing as attachments hereto: (1) the non-public version of the Attachment and Exhibits to MSC’s Opposition to Motion to Compel as filed concurrently with MSC’s Opposition to MCS’s Motion to Compel on November 29, 2021 and amended as noted herein; and (2) the public version of the Attachment and Exhibits to MSC’s Opposition to Motion to Compel, redacted to remove the confidential information identified herein and including the amendments noted herein. This public version can be placed on the docket.

Respondent, in consultation with Complainant, does not believe that any portion of its Opposition itself as filed on November 29, 2021 is confidential, and therefore that can be placed on the docket as filed. The few redactions identified here are only in the Attachment and Exhibits to the Opposition.

WHEREFORE, MSC respectfully requests that the non-public version of the Attachment and Exhibits to MSC’s Opposition to Motion to Compel be designated as confidential, and that the version with those confidential portions redacted be placed on the docket as the public version of its filing.

Respectfully submitted,

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MSC Mediterranean Shipping Company S.A.

DATED: December 3, 2021

CERTIFICATE OF SERVICE

I certify that, on December 3, 2021, a true and current copy of the foregoing was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following:

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/s/ John Longstreth

**PUBLIC VERSION -
CONFIDENTIAL
MATERIALS EXCLUDED**

**ATTACHMENT -
CITED PAGES FROM
MASTER DEPOSITION**

Confidential



Transcript of **Richard Master**

Wednesday, November 17, 2021

MCS Industries, Inc. v. Cosco Shipping Lines Co., LTD

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1 BEFORE THE FEDERAL MARITIME COMMISSION

2 MCS INDUSTRIES, INC., - - - Docket No. 21-05

3 Complainant,

4 -VS-

5 COSCO SHIPPING LINES

6 CO., LTD. AND MSC

7 MEDITERRANEAN SHIPPING

8 COMPANY S.A.,

9 Respondents.

10 - - -

11 VIRTUAL DEPOSITION OF RICHARD MASTER

12 **CONFIDENTIAL TRANSCRIPT**

13 REPRODUCTION OF THIS TRANSCRIPT IS PROHIBITED

14 WITHOUT AUTHORIZATION FROM THE CERTIFYING

15 AGENCY

VIRTUAL DEPOSITION OF RICHARD MASTER,
a witness herein, called by the Respondents,
for examination, taken pursuant to the
Commission's Rules of Practice and Procedure,
by and before Karen A. Nickel, a Certified
Realtime Reporter and a notary public in and
for the Commonwealth of Pennsylvania, held
remotely with all parties appearing from their
respective locations, on Wednesday, November
17, 2021, at 9:00 a.m.

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I N D E X

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E X H I B I T S

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1 received other reports, you know, during that
2 -- that indicated that there were other
3 statistics and that the -- there was a
4 dislocation of, and, you know, we may be
5 referring to different time frames and, et
6 cetera, but go ahead.

7 BY MR. LONGSTRETH:

8 Q. Well, I'm not -- really, the point
9 is not to sort of contradict anything that you
10 may have said. The point is really to see if
11 we can have a general understanding that this
12 time period we're talking about, May to July of
13 2021, that was a period where there was greatly
14 increased demand for container ship services
15 over the previous year; would you acknowledge
16 that that's correct?

17 A. Over the previous year which had
18 more COVID -- you are correct, that factories
19 were closed down. There was less demand for
20 service. These are factories in the Orient
21 were closed up. We're talking about the
22 corridor between China and the United States.

23 I would say, yes, in the prior year
24 that demand was, certainly, less as a result of
25 COVID.

1 Q. And then greatly increased demand in
2 the summer of 2021?

3 A. And then it jumped up. But,
4 overall, was there a massive increase in
5 requirement over a period of years, that -- it
6 certainly wasn't 33 percent.

7 Q. Okay. I don't know what you mean by
8 "period of years." We're trying to talk about
9 the summer of 2021.

10 A. Well, you are, and I'm sort of
11 adding more context --

12 Q. And I -- I understand.

13 A. If you let me, please, I'm trying to
14 add context to this and, you know, certainly,
15 the shippers were increasing the supply of
16 vessels. They were having, certainly,
17 difficulty in maintaining crews. The ports
18 were having difficulties. Certainly there was
19 a massive disruption that allowed the prices
20 to, you know, rise, correct.

21 Q. So there was an increase in demand
22 and then you are also mentioning that with port
23 disruptions, labor crews with COVID and all,
24 that was creating some supply disruptions as
25 well.

1 So there was less supply at a time
2 there was increased demand; is that correct?

3 A. Yeah. That's correct.

4 Q. Yeah. And generally -- I'm sorry?

5 A. Well, but it didn't justify that
6 your client would ignore, you know, for three
7 months, the MCS's requirements under contract.

8 Q. We'll get to that.

9 A. Okay.

10 Q. And I understand, I have that point
11 -- it's now on the record.

12 I would like to address that later
13 but, as I said, we're going through the
14 Complaint now, we're going through the
15 allegations. So let me just ask my next
16 question before you volunteer your view of the
17 case.

18 Let me ask my next question, which
19 is generally under economic theory, when demand
20 is up and supply is down, do prices go up or
21 down?

22 A. In general economic theory, if there
23 is a functioning market where there are not
24 these consolidations and concentrations of
25 power, you are correct, that prices will go up

1 under the contract.

2 Q. Right.

3 A. There were three ports that were --
4 three ports to the West Coast that they were --
5 had contracted to supply containers and one of
6 them we got absolutely none and we had to go
7 into the spot market to replace those.

8 Q. Right.

9 A. And --

10 Q. And then -- I'm sorry.

11 A. Yeah, go ahead.

12 Q. Yeah, you said there was one you got
13 absolutely none and then there was another
14 port, Fuzhou, where you got, at least from MCS,
15 all --

16 A. Anything we wanted. Interesting --

17 Q. Is that correct?

18 A. Yeah, we did get everything we
19 wanted, but it was really a modest requirement,
20 if you allow me to explain.

21 Q. Right, right. So my --

22 A. What was told me, a very modest
23 requirement, maybe I think one a week or one a
24 month, you know, from Fuzhou. We didn't need
25 very much. We needed containers from Qingdao,

1 and the third port eludes my -- I keep
2 forgetting the name of the third port. Maybe
3 you can help me there.

4 Q. Yeah. It's Tianjin. So, basically,
5 you're -- you're conceding that you got all of
6 your allocation in Fuzhou; is that correct? I
7 mean, you're trying to -- you're trying to
8 minimize the impact?

9 A. Very minimal.

10 Q. Right. You're trying to minimize
11 it, but you did get all of your allocation
12 from --

13 A. I'm not trying to minimize. It was
14 one container versus, you know, a large number
15 of containers relative coming from Qingdao and
16 we didn't get anything from --

17 Q. Well, how much larger is your
18 allocation in Qingdao than in Fuzhou?

19 A. Okay. So I think we -- the
20 allocation was like 30 containers -- not --
21 excuse me. The overall requirement was
22 somewhere around 30 containers a month from the
23 three ports. Fuzhou was very modest. It might
24 have been three or four a month.

25 Q. Okay.

1 MR. REYNOLDS: Understood. I
2 will be happy to work that out after the fact.

3 BY MR. LONGSTRETH:

4 Q. So I'm going back to these monthly
5 figures here. And so for May, it appears that
6 the position set forth in this document is that
7 the allocation was 12 FEUs and you received
8 zero FEUs so that left you 12 short for May in
9 Tianjin; is that correct?

10 A. (Witness nodded head affirmatively.)

11 Q. And then in June, there were five
12 weeks, I guess, in June because I guess the
13 departures were on a day where there were five
14 weeks that month, I guess. I don't know.

15 Then again three per week, so that's
16 15, and you got 7 out of the 15 in June; do you
17 see that?

18 A. Yeah.

19 Q. And then for July, we're back to
20 four weeks, so the contract is 12 and the
21 quantity received is 12. So you're 12 out of
22 12 in July in Tianjin; is that correct?

23 A. Yeah.

24 Q. Okay. Now --

25 A. And these were -- are you saying

1 these were under -- under the contract, we
2 received them under the contract?

3 Q. That appears --

4 A. Is that what we're saying here?

5 Q. That's what you're saying. This is
6 your document. Not only your document, but
7 provided in support of your damages claim.

8 A. Right.

9 Q. So it appears to be something you
10 and your counsel are subscribing to.

11 A. Well, yes, that's correct. And I
12 see that there is varying costs out of Tianjin.

13 Q. I understand that. I'm not asking
14 about --

15 A. They indicate to me that we -- they
16 were not under contract. There are one, two,
17 three, four, five, six, you know, multiple --

18 Q. I understand.

19 A. Multiple --

20 Q. I understand. I'm not asking --

21 A. Not under contract.

22 Q. Right. I'm sorry. I'm talking over
23 you. I'm not asking you about those. I said
24 right up at the beginning I'm not asking you
25 about those. So if we can just set that aside.

1 counsel has the opportunity to try to correct
2 the record afterwards. So nobody is trying to
3 trick you here.

4 So let me go back to -- let me go
5 back to what I was talking about. What this
6 document indicates is that you are alleging you
7 received none of your 12 contracted shipments
8 at Tianjin in May, that you received about half
9 of them in June, 7 of 15, and that you received
10 all of them, 12 out of 12, in July.

11 Do you see that?

12 A. Yes, I do.

13 Q. And is that what that appears to
14 show?

15 A. Yes, it does. It appears to show
16 that.

17 Q. So the question I have is, you know,
18 reading this, it appears that whatever problem
19 existed in May was partially resolved in June
20 and fully resolved in July.

21 Isn't that what those documents seem
22 -- isn't that what those figures seem to
23 indicate?

24 MR. REYNOLDS: Objection,
25 calls for speculation. A foundation issue,

1 too.

2 THE WITNESS: I would agree;
3 it's speculation. I don't know why they are
4 different.

5 BY MR. LONGSTRETH:

6 Q. Okay.

7 A. I don't know.

8 Q. So, okay. I'll take the answer you
9 don't know.

10 A. I don't --

11 Q. Go ahead.

12 A. I don't know.

13 Q. You don't know. Okay. So that
14 means, then, that you don't know why the --
15 well, let me ask you this question. Do you
16 know why none --

17 A. Well, what it indicates to me is
18 that we were communicating correctly in booking
19 something in July, and got the containers that
20 we had forecasted under the -- our agreements,
21 yes.

22 Q. Okay. And then what was going on in
23 June? Why was it 7 and 15 in June?

24 A. I can't speculate why your client
25 denied us eight containers in June.

17 Q. Okay. Now, let me go back to the
18 question that I had before. Which, it does
19 appear to me, when I look at these figures,
20 zero for 12, 7 for 15 and 12 for 12.

21 Would you agree that the situation
22 was improving over that period?

23 A. I would agree that we got 12 out of
24 12 in July and we were fortunate to get it,
25 given your otherwise poor performance.

1 Q. Okay.

2 A. I mean, look, we're playing around
3 with language here.

4 Q. Yeah.

5 A. I think --

6 Q. We're not. I'm sorry. We're not
7 playing around and --

8 A. If you want me to characterize --

9 Q. Yes.

10 A. -- here that somehow a poor
11 performance shows some bright light of
12 improvement, you know, yes, there was some
13 improvement.

14 Q. Well, it goes from zero percent to
15 50 percent to 100 percent; doesn't it?

16 A. (Witness nodded head affirmatively.)

17 Q. I mean, you're nodding. Can you
18 make an answer for the record, please?

19 A. It is overall an inadequate
20 performance for those three months.

21 Q. Okay.

22 A. Overall inadequate performance.

23 Q. I understand.

24 A. We expect -- our -- we get penalized
25 by our customers for, you know, a 5 percent

1 Q. End of July, okay.

2 A. -- is when we filed it.

3 Q. Okay. We've got an August 3rd date,
4 I guess, on --

5 A. That's probably when service was
6 made.

7 Q. Okay. So you filed the Complaint
8 July 28. Were you aware, when you filed the
9 Complaint July 28, that at Tianjin, 12 of the
10 12 contracted-for FEUs had been carried by MSC?

11 A. Probably not aware of all the July
12 performance. You know, I think we were -- you
13 know, the Complaint was drafted and then
14 presented to us for consideration, and, you
15 know, I think we were, in July we were in the
16 midst of, you know, deliberations and, you
17 know, I'm not sure -- I'm not recollecting
18 that, yes, I was aware of stellar performance
19 in Tianjin in July. I cannot say -- I cannot
20 tell you that I was aware of it or occupied by
21 other things.

22 Q. And were you aware -- and I'll
23 accept it's already on the record your comment
24 about overall performance, we don't need to go
25 into that again -- were you aware of this what

1 Q. Okay, okay. I will have to say that
2 I don't like to cut off a witness, but we do
3 have to get direct answers to the questions.
4 We're talking about Tianjin and, you know, 30,
5 60 seconds into your answer now we're talking
6 about Qingdao and all of that. Let's try to
7 stick to the question.

8 If counsel wants you to make
9 statements after I'm done, he will have the
10 right to do that. You don't need to make
11 statements in response to my questions.

12 So let me get back to the question.
13 Let me put it this way --

14 A. I have the right to answer the
15 question to the best of my ability and give you
16 the response --

17 Q. Right. But the question --

18 A. -- that is consistent with my
19 belief. I'm sorry.

20 Q. Right. But the question asked, we
21 were not asking about Qingdao. We're asking
22 about Tianjin. So please try to keep yourself
23 disciplined.

24 Let me ask the question again.
25 Without the word "improving" that you appear to

1 take issue with, were you aware, at the time
2 you verified the Complaint, that zero percent,
3 under your figures, zero percent of the
4 contracted amount had been carried in May,
5 7/15ths, a little under fifty percent, was
6 carried in June, and a hundred percent was
7 carried in July?

8 Were you aware of those numbers?

9 A. I did not focus on those particular
10 numbers, to my recollection.

11 Q. Okay. So I take it, then, that you
12 also never asked anyone whether there was some
13 problem in May --

14 A. I'm not saying that. I may have
15 asked --

16 Q. Mr. Master, please wait until I
17 finish asking the question. We have to have
18 rules here. Okay?

19 A. Of course.

20 Q. It's going to be a free-for-all. So
21 what I'm saying is does that mean, then, that
22 you never asked anyone, before verifying the
23 Complaint, whether there had been some problem
24 at Tianjin in May that was resolved sometime in
25 June and then the problem seems to have gone

1 Q. And what was your basis --

2 A. It is unfortunate -- what? What's
3 that?

4 Q. What was your basis for considering
5 it intentional?

6 A. The reality that prices had been
7 raised to a tremendous extent, the reality that
8 we had communications back and forth asking
9 where is the data, where -- of our bookings,
10 where is the data of our shippings? And there
11 was no effort to correct the situation out of
12 Qingdao and no response, sir, no response
13 except, you know, where is the additional money
14 that we requested from you guys?

15 Q. Okay. I understand. I understand
16 the position. So that's why you think it was
17 intentional.

18 Why do you think it was resolved in
19 July, then? Why do you think it went to a
20 hundred percent in July, then, if it was
21 intentional?

22 A. I don't know. I don't know.

23 Q. No idea? No idea? That just
24 doesn't fit with your -- that doesn't fit with
25 your sense that it was intentional; does it?

1 MR. REYNOLDS: Objection,
2 argumentative.

3 BY MR. LONGSTRETH:

4 Q. Does it fit with your sense that it
5 was intentional if the problem was resolved in
6 July?

7 MR. REYNOLDS: Objection,
8 assumes facts not in evidence.

9 THE WITNESS: In one location
10 it doesn't fit into the overall context. I'm
11 sorry, I cannot make that leap of faith.

12 BY MR. LONGSTRETH:

13 Q. Okay. And, again, did you ever ask
14 anyone why --

15 A. I --

16 Q. -- in May to a hundred percent in
17 July?

18 A. I can't -- excuse me. You asked a
19 question, and I thought the question was
20 completed.

21 Q. Well, I hadn't finished it, but go
22 ahead.

23 A. I think I testified before that I
24 wasn't particularly focused on what was going
25 on in Tianjin in July and that, you know -- and

1 that's the answer.

2 Q. Okay. Let's go to -- let's go to
3 Qingdao now. And there you're saying that
4 nothing was carried -- this shows at least that
5 nothing was carried in May, June, July.

6 Do you see that?

7 A. Yes.

8 Q. Do you know how many booking
9 requests MSC received during that period?

10 A. Personally, I don't have that.

11 Q. Okay. Thank you. Let's go back to
12 Paragraph 4 of the Complaint. We got a little
13 sidetracked.

14 And again, your counsel may tell you
15 one of the issues with long, non-responsive
16 answers is that it leads to other places. But
17 let's go back to No. 4.

18 You see you're talking about blank
19 sailings in Paragraph 4. Do you see that?

20 A. Yes.

21 Q. Okay. Do you know what a blank
22 sailing is?

23 A. Yes. It's a sailing, my
24 understanding, that does not occur; that it is
25 a canceled sailing, which means that transport

1 A. Well, you know, I recall that some
2 of the shipments, some of the sailings were
3 blanked because of delays that resulted in the
4 normal course of operations, and that the
5 carriers, you know, were being delayed at ports
6 in the United States or were being delayed as a
7 result of COVID disruptions, the lack of
8 personnel in ports in Asia, and that they could
9 not make those sailings.

10 And that, certainly, is a legitimate
11 reason for some of the blank sailings.

12 Q. Okay. And were you aware of any
13 other reasons for canceled sailings?

14 A. I, you know, was informed, I think,
15 by my personnel at MCS was that there were some
16 sailings that were -- should have taken place
17 that were questionably canceled and that that
18 led to an artificial increase in demand for the
19 remaining sailings.

20 Q. And who advised you of this?

21 A. I cannot recall who, you know, among
22 the mentioned folks that, you know, in the
23 early part of the deposition, the folks that I
24 mentioned as advisors to me.

25 Q. Do you recall anything they told you

1 as to why it was questionable that these
2 sailings had been canceled?

3 A. Well, I think that, you know, what I
4 gave you as an explanation was the questionable
5 nature of --

6 Q. What was questionable about them,
7 though? In other words, sorry -- what was
8 questionable about them?

9 Do you recall them saying why --

10 A. Well, if there's a reason that as a
11 result of disruptions in the, in, you know, at
12 the ports, et cetera, the reasons that I think
13 are legitimate for blank sailings --

14 Q. Right, yeah.

15 A. -- then that's one thing. But then
16 there were reasons that were not considered so
17 legitimate. And I cannot give you, you know,
18 why -- you know, what the reasons were stated
19 for otherwise for blank sailings.

20 There were legitimate reasons, and
21 what we're saying here is that there were
22 reasons that tended to, you know, constrict the
23 supply and led to artificial increases in rates
24 and demand.

25 Q. I understand that's what you're

1 saying here, and what I'm asking, because
2 that's the purpose of this deposition, is, do
3 you recall what the basis was, if any, that the
4 people who suggested there were --

5 A. Sorry --

6 Q. -- reasons gave you? What knowledge
7 did they have, what basis did they have for it?

8 A. Well, these were folks that were,
9 you know, much more on the scene than I was,
10 and --

11 Q. Sure.

12 A. And they had, you know, knowledge
13 and they made these representations to --

14 Q. But you don't recall who they were
15 at this point?

16 A. I don't recall who they were. I
17 mean, it's a small group of folks, and you're,
18 certainly, able to access them and question
19 them.

20 Q. Okay. But you don't recall asking
21 them why they thought these were --

22 A. I don't -- excuse me --

23 Q. Why they thought -- I'm sorry.

24 Please, you need to let me finish the question.

25 A. Yes. Sorry.

1 Q. What I'm saying is you don't recall
2 -- so do you recall ever asking them why they
3 thought these canceled sailings were
4 illegitimate rather than for the legitimate
5 reasons that you have just very clearly
6 identified?

7 A. You know, today I don't have a
8 recollection of either asking them or not
9 asking them or what their -- who it was that we
10 had these discussions, and, you know, I --
11 right. I'm drawing a blank about the blank
12 sailings.

13 Q. Okay. That's a turn of phrase. And
14 I do take it in Paragraph 4 it does not refer
15 to these legitimate reasons for canceling
16 sailings that you just set out; does it?

17 A. It doesn't set out the legitimate
18 reasons, you're correct. I agree with you.

19 Q. Okay. Now, I see in Paragraph 4,
20 again, you refer to parallel and strikingly
21 similar actions.

22 Do you see that?

23 A. Yes, I do.

24 Q. Okay. And why is that allegation in
25 there about parallel and strikingly similar

1 I'm not sure that the infrastructure
2 legislation is, you know, sufficiently funding,
3 you know, an upgrading of the ports. I
4 certainly think that the carriers have
5 something to complain about and, you know, the
6 environment needs, certainly needs to be
7 addressed.

8 And I'm working on that with members
9 of Congress and I had that discussion with the
10 President of the United States as well.

11 Q. I agree. I think that's very
12 important. Nobody thinks we're in a very good
13 place right now. And it does, as you point
14 out, it creates a lot of harms. MSC would love
15 to be running its ships through these ports
16 faster. I think everybody knows that.

17 Let's go on to a -- let's go on to
18 just finish this line of question before we
19 take the break.

20 I'm going back to the situation,
21 suppose I'm a carrier and I have ten shippers
22 that want service contracts with me but I only
23 have room for five, I can only accommodate
24 five. Okay.

25 You know, what's your view as to

1 what I'm supposed to do with that? I mean, I
2 can't give everybody everything they want, you
3 know.

4 A. Well, they shouldn't discriminate,
5 you know, between large and small shippers, you
6 know. If they can only allocate a certain
7 number of -- a certain percentage of what the
8 requirement is, they should not discriminate.

9 You know, I understand that they
10 have some exemption from, you know, antitrust
11 regulation and that they can get together and
12 figure out what service should be given at
13 various ports and coordinate things like that.
14 I'm not sure if they have the ability to do
15 that with individual shippers, but it seemed
16 that we were only getting a portion and, you
17 know, I don't want to -- I'm going into an area
18 that I'm unfamiliar with. Sorry. Let me --

19 Q. Okay. And I understand. We're
20 going to -- yeah, I mean, there's --

21 A. We could go into all these things.

22 Q. It's complex. I'll go on with --

23 A. It is a matter of policy, and this
24 case is very particular and, you know, there
25 are certain things that we present that are

1 contextual but, you know, the allegations are
2 specific and about a specific set of
3 circumstances. And maybe we should, you know,
4 focus on that.

5 Q. Okay. Fine. But setting
6 discrimination aside and all of that, I guess
7 the final point is, if there is more demand for
8 service contracts than a carrier can fulfill,
9 then the carrier is going to have to do
10 something, right, either deny certain people
11 contracts altogether or cut back on the amount
12 that it gives to -- gives to people that come
13 in?

14 Is there another option that you can
15 see?

16 A. I understand the argument but --
17 but, you know, I think that we did not get the
18 contracts that we needed. Now, MSC, you know,
19 reconsidered what it did allocate for us and
20 gave us slightly more, you know, and we
21 appreciated that. We did not accept that
22 because we had already, I believe this is the
23 case, we had already made, you know, a deal

1 Q. So you're saying actually --

2 A. I understand your argument that, you
3 know, there is a limited capacity, demand is
4 higher, and so you can't contract for more than
5 your capacity.

6 Q. Right. But you're saying, just to
7 make clear that it's on the record, you're
8 saying that there actually was, after you did
9 the award to [REDACTED], MSC did come back to you
10 and offer you more --

11 A. Yeah, well --

12 Q. Which trade --

13 A. We --

14 Q. Which trade --

15 A. I'm sorry.

16 Q. I'm saying which trade name was that
17 in? Which trade --

18 A. I don't know.

19 Q. Okay. That's fine.

20 A. You know, let me say this, we got
21 only 50 percent of what we needed. And, yes,
22 demand was going up, but we don't think demand
23 was going up by 50 percent, so that something
24 else was going on, and we need to investigate
25 that. We think the Commission needs to

1 MR. LONGSTRETH: I think
2 that's correct.

3 MR. REYNOLDS: And I would
4 instruct you not to -- I would instruct you not
5 to disclose conversations that you had with us
6 as counsel. But to the extent you had
7 conversations with members of the Federal
8 Maritime Commission staff, for example,
9 regarding the letter that you're speaking
10 about, that would not be privileged and you can
11 testify about that.

12 THE WITNESS: Okay. Okay. So
13 we did, and I think, Matt, you were on that
14 conversation as well, we did have discussions
15 with two members of the staff of the
16 Commission, and I think it was the general
17 counsel, but I'm not sure, someone from the
18 counsel's office, I'm not sure about that, and
19 it was also maybe their public relations
20 person.

21 And I think -- you know, I don't
22 have the names. We could get you the names of
23 the folks if that's important to you. And --

24 BY MR. LONGSTRETH:

25 Q. I mean, at this point, I would just

1 like to know, basically, the substance of, you
2 know --

3 A. Well, what happened is --

4 Q. The substance of the Complaint, I
5 mean.

6 A. The decision was made since we filed
7 a case that they would not consider further
8 the, you know, the letter as actionable.

9 Q. Okay. Did they take -- did the --
10 okay. Why don't we take a break here. I
11 actually promised one about ten minutes ago.

12 A. Just from a housekeeping standpoint,
13 how long do you anticipate this to go?

14 Q. Well --

15 A. All afternoon?

16 Q. I'm hoping to get done mid
17 afternoon. I'm hoping not to go all the way to
18 the end.

19 And I guess I'll just say, without
20 being, you know, too aggressive about it, some
21 of that depends on you. You have given very,
22 very long and often non-responsive answers to
23 questions, and I think if you can bring that
24 into tow, that might move things along a little
25 quicker.

1 had a colloquy with counsel. I had a series of
2 questions that were designed to find out if
3 there was -- if they had any evidence or
4 firsthand knowledge of unlawful conspiracy and
5 collusion between MSC and Cosco, and I
6 understand from conversations with
7 Complainant's counsel that they weren't
8 intending to allege that and don't have such
9 evidence.

10 So I think based on that
11 understanding, I won't go through all the
12 allegations to try to establish that with the
13 witness. Is that your understanding?

14 MR. REYNOLDS: Thank you.
15 Yeah, that's correct; our Complaint was not
16 intended to allege any unlawful conspiracy
17 between the two Respondents named in the
18 Complaint and was not intended to convey our
19 possession or the existence of specific hard
20 evidence of such conspiracy.

21 THE WITNESS: And that's my
22 understanding as well.

23 MR. LONGSTRETH: Okay. So I
24 think if that's the case, you know, this
25 talking about parallel and seemingly

1 those markets, 90 percent of the, you know,
2 markets that -- in population settings in the
3 United States we see this happening. It's
4 size.

5 You know, and we're a dominant
6 supplier in our market someplace as well. We
7 don't have that power because there is -- you
8 know, our customers are probably stronger than
9 we are. But, listen, I am -- it's been three
10 hours and maybe I'm talking too much. So
11 please --

12 Q. Well, we talked about wanting to get
13 done by mid afternoon, so I think it will help
14 if we go straight.

15 Do you know what the
16 Herfindahl-Hirschman Index is?

17 A. Wow, I've heard about it. You'll
18 have to refresh my recollection.

19 Q. Okay. Do you know if it is a widely
20 used measure of market concentration used by
21 the antitrust regulatory agencies among --

22 A. I don't -- I'm not familiar enough
23 to comment on it.

24 Q. Okay. Okay. Do you know whether
25 the ocean shipping industry would be considered

1 to be unconcentrated under the
2 Herfindahl-Hirschman Index application to the
3 market share figures you sent to the FMC on
4 July 14?

5 A. You know, we've read some things
6 about it. I do not recall. I really don't,
7 don't recall that.

8 Q. Okay. And with respect to
9 alliances, do you know whether the FMC approves
10 alliance agreements?

11 A. My understanding is yes, that they
12 have approved them, yes.

13 Q. And do you know if they oversee them
14 on a regular basis?

15 A. I am not -- not aware of their
16 regulatory activities.

17 Q. Okay. Do you know -- okay. That
18 may be the answer to this question as well. Do
19 you know whether the FMC gathers information
20 regularly from the three alliances so it can
21 detect activity that might increase freight
22 rates or decrease services?

23 A. You know, I cannot really comment on
24 the FMC's current activities.

25 Q. Okay. And so then I take it you

1 gives them an opportunity to, you know, to
2 discriminate.

3 And then we say here, in May, July
4 -- through July 2021, they did discriminate.
5 They clouded their contractual service
6 commitments, provided MCS with a small fact
7 base required under the service agreement. I
8 mean, you know, that's really, that goes to the
9 essence of the case.

10 BY MR. LONGSTRETH:

11 Q. Right. That's each Respondent;
12 right?

13 A. That's each Respondent, not a
14 coordinated -- yeah.

15 Q. Okay. That's all I wanted -- okay.
16 That's really what I wanted to clarify there,
17 that we are not -- again, as we said before,
18 you are not intending to allege that somehow
19 you have specific evidence that MSC coordinated
20 with Cosco or any other carrier?

21 A. Absolutely not. We're not saying
22 that. We are -- well, wait a second. We don't
23 have specific evidence of that, that's correct.

24 Q. Paragraphs 19 to 28 are basically
25 legal assertions. I think we can sort of -- I

1 free to choose among any of a hundred booking
2 agents?

3 A. I don't know the answer to any of
4 these questions. I'm sorry.

5 Q. Okay. Do you know if you're having
6 continuing difficulties now at Qingdao?

7 A. Since we filed the lawsuit, we have
8 been getting acceptable service from MSC and
9 from other shippers as well.

10 Q. Okay. And I think you said you
11 filed the lawsuit at the end of July?

12 A. That's correct.

13 Q. Do you know when and how MSC became
14 aware of the lawsuit?

15 A. Well, they were served. We have
16 record of them being served. I don't know the
17 details of the aftermath of those things.

18 Q. I'm just wondering if you have a
19 rough idea of the time period.

20 A. Yes. You know, I think they were
21 served in August. I see August the 8th, and
22 that --

23 Q. August 3rd, I think, is the service
24 date listed.

25 A. Oh, is it August the 3rd? Sorry.

1 is presented that has language that, in
2 paragraph upon paragraph of legalese, that we
3 have little power to, you know, to alter
4 because of our bargaining position, and it's
5 not fair.

6 You know, you're asking me whether
7 or not this is appropriate and fair and,
8 frankly, it's not fair. We don't --

9 Q. My question --

10 A. Wait a second, sir. We don't need
11 all the service in one month. We --

12 Q. Right.

13 A. And it was assumed when we
14 negotiated these agreements that the service
15 would be provided pursuant to a forecast. We
16 gave that forecast, and that's the problem.
17 Now here they're saying, well, we're not
18 required to give it to you when you need it.
19 We're required to give it to you by the end of
20 the year.

21 Unfair. Unfair.

22 Q. Okay. So let me go back to my
23 specific question, which I don't think was
24 answered; was it true or untrue, to your
25 knowledge, that Cosco had carried 92 of the 500

1 TEUs under the service commitment?

2 A. I don't know the answer to that
3 question.

4 Q. You don't know the answer to that,
5 okay.

6 A. Sitting here today, I don't have the
7 answer to that.

8 Q. Okay. Now, there is an allegation,
9 if you go back to Page 3, they're talking about
10 the allegation that --

11 A. Why are we arguing, you know,
12 Cosco's case? Why aren't you arguing your
13 case?

14 Q. I'm not arguing Cosco's case. I'm
15 asking a few questions about whether there was
16 a basis for your allegation against Cosco
17 because if there is no basis for those, that
18 also increases the likelihood that there were
19 none for us.

20 So I'll ask you this last question.
21 Now, it says, Cosco has grossly flouted its
22 contractual service commitment an infinitesimal
23 1.6 percent of the space required under the
24 contracts.

25 Do you see that?

1 Q. Are you aware that the Journal of
2 Commerce went back and corrected its article,
3 put in a correction in the article even though
4 it was from 2019?

5 A. No, I'm not. But there is a concern
6 about consolidation of the industry and, you
7 know, dominant players.

8 Q. I understand. Then we talked about
9 this, we talked about the alliances, talked
10 about the hearings.

11 You talked about disruption in the
12 chain. Did you have any discussions about this
13 letter with Richard Powers, the acting attorney
14 -- I'm sorry, the acting assistant --

15 A. No, I did not.

16 Q. Okay. Did you have any discussion
17 with anyone at the Justice Department about it?

18 A. No.

19 Q. And we talked about Representative
20 Cartwright and Representative Wild?

21 A. That is correct.

22 Q. And then --

23 A. Interesting here -- well, I'm not
24 going to say anything.

25 Q. Yeah.

1 just made a note of it, actually, to make a
2 copy of it. I don't want to get into it, but I
3 just wanted to flag it.

4 THE WITNESS: You're going to
5 provide that information?

6 BY MR. LONGSTRETH:

7 Q. It is already provided.

8 Do you know what a demand letter is
9 in the context of litigation?

10 A. I'm not -- you know, I would
11 appreciate if you would describe that.

12 Q. Well, okay, I can give you my
13 understanding of it and find out. And have you
14 ever heard the expression "demand letter"?

15 A. Yeah, I've heard the expression
16 demand letter.

17 Q. Okay. In my -- I'll tell you, in my
18 experience, it's a letter that's usually sent
19 to particular people in a business relationship
20 before they sue saying not only am I unhappy
21 with our situation, but we are so unhappy that
22 we are going to sue. And sometimes they attach
23 a draft Complaint, sometimes they don't. It's
24 usually just a lawyer letter.

25 But it's very commonly done in these

1 circumstances and, as far as I can tell, it was
2 not done in this one.

3 And I guess I'm just asking you if
4 you have any understanding as to why that was
5 not done here, again, setting aside any
6 conversations you might have had with your
7 counsel as to, you know, the advisability of
8 sending one or not sending one?

9 A. I don't think it was recommended by
10 counsel.

11 Q. Okay. In the IP litigation you were
12 in, do you recall if you sent a demand letter
13 before suing?

14 MR. REYNOLDS: I would object
15 and just instruct Mr. Master not to reveal any
16 attorney-client privileged communication.

17 MR. LONGSTRETH: No, no, no,
18 I'm not asking about any. I'm asking him did
19 he send the letter. The letter itself would
20 not be privileged and the fact that he sent the
21 letter would not be privileged. I've asked in
22 that litigation did he send a demand letter.
23 I'm not asking if he discussed it with his
24 counsel.

25 THE WITNESS: We did send a

1 letter prior to suing that required -- it asked
2 for a particular action to be taken place.

3 BY MR. LONGSTRETH:

4 Q. Okay. But, again, you did not do
5 that here? I'm not asking you why. I'm just
6 verifying you did not send that.

7 I mean, that's something you could
8 have done; right? You could have sent us a
9 letter and said, hey, you know, we're so
10 unhappy with this, we want to sue; right? But
11 you didn't do that?

12 A. Yeah. I think it's distinguished
13 from the IP situation in that --

14 Q. Sure.

15 A. -- there was just one incident, you
16 know, one Defendant, one, we were the only
17 Plaintiff in that case, it was -- you know,
18 particularly related to us and, you know, in
19 this case, there is a pattern and practice and
20 it seems to be across the United States
21 involving the society and -- and I'm just
22 speculating that that is what went through our
23 mind and, you know --

24 Q. Okay. I don't know what to do. I
25 don't know what to do with that answer. I

Exhibit “A”

MSC Damage Calculation

Tianjin to CA

REDACTED

REDACTED

Month	Weeks	Contracted		Monthly		
		FEU	Qty Per	Total	Received	Qty Short
		Week		Contracted		
May	4	3		12	0	12
June	5	3		15	7	8
July	4	3		12	12	0
				39	19	20

Qingdao to CA

REDACTED

Month	Weeks	Contracted		Monthly		
		FEU	Qty Per	Total	Received	Qty Short
		Week		Contracted		
May	4	3		12	0	12
June	5	3		15	0	15
July	4	3		12	0	12
				39	0	39

Exhibit “B”

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY SA

**COMPLAINANT MCS INDUSTRIES, INC.'S INITIAL DISCLOSURES
TO RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY SA**

Pursuant to 46 C.F.R. § 502.141(b), Complainant MCS Industries, Inc. ("MCS"), by its undersigned counsel, provides the following initial disclosures to Respondent MSC Mediterranean Shipping Company SA ("MSC"):

(1) The name and, if known, the address and telephone number of each individual likely to have discoverable information that the disclosing party may use to support its claims or defenses, unless the use would be solely for impeachment;

Name	Last Known Address	Telephone Number
Susan Schantzenbach	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Brittany Montesano	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Steve McGowan	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Greg Yocco	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Richard Master	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Thomas DeMarino	MSC, 160 Mt. Bethel Road, Warren, NJ 07059	908-210-3026
Chiara Ann Ciabatti	MSC, 420 5th Avenue, 8th Floor, New York, NY 10018-2702	212-764-4800

Name	Last Known Address	Telephone Number
Dennis Ren	MSC, 38th Floor, Qingdao International Finance Center, 59 HongKong Mid. Road, Qingdao, China	86-532-89096095
Jack Feng	MSC, 34th floor, Tianxing Riverfront Square, No. 81 Shi Yi Jing Road, He Dong District, 300171, Tianjin City, China	022-2224257515
Livy Lin	MSC, Unit 04, 07-09, 20 Floor, Zhonggeng Youth Plaza, No. 83 East Street, Gulou District, CN - 350001 Fuzhou, Fujian Province, China	86-591-8787-0748
Holly Hai	Expeditors, 2510B Room, Fei Long Tian Run Mansion, No. 169 Yingchun Street, Laishan District, Yantai 264003, China	86-535-6580001
Jeff Du	Expeditors, 5th Floor, Building W-14, Airport Business Park, No.76 HuanHeBei Street, Airport Economic Zone, Tianjin, China	86-22-5867-6000 ext. 300
Agnes Ye	Expeditors, Unit 906, 9th Floor, West Tower, Heng Li Prosperity Center, No. 69 Yingji Road, Fuzhou 350003, China	86-591-8754-5028
Ty “Summer” Li	Shandong Smart International Logistics Co., Ltd., 17th Floor, Fudu Mansion, No.8 Nanjing Road, Qingdao, Shandong Province, China	86-532-87073286
Xiaotong “Lemon” Liu	Shandong Smart International Logistics Co., Ltd., No. 358, Longgangshan Road, Economic Development Park, Qingdao, Shandong, 266071 China	86-532-87073299
Terry Zheng	Qingdao JET Marine Logistics, 16F, Shandong International Trade Mansion, No.51 Taiping Rd, Qingdao, Shandong Province, China	86-532-82668811-111
Li Nan	Penavico, No.5 Xu Zhou Road, He Xi District, Tianjin, China	022-83326241
(Personnel potentially to be identified in discovery)	Port-Town International Shipping Agency, Floor 8, Building B, Xinhua Square, No.173 Wusi Road, Gulou District, Fuzhou City, Fujian Province, China	0591- 87383735

(2) A copy, or a description by category and location, of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or

control and may use to support its claims or defenses, unless the use would be solely for impeachment;

Category	Location
Emails concerning the subject matter of MCS's causes of action against MSC and MSC's defenses against MCS's causes of action, including the current service contract between MCS and MSC, the negotiation thereof, and MCS and MSC's respective performance thereunder; the booking, confirmation, tendering, and tracking of MCS's containers with respect to MSC, either directly or through ocean transportation intermediaries; the booking, confirmation, tendering, and tracking of MCS's containers with respect to other ocean freight carriers when not carried by MSC; spot market prices for ocean freight; packing lists, arrival notices, invoices, and ACH payment confirmations; requests for proposal, awarded lanes, and weekly allocations; the effects of MSC's failure to carry MCS cargo on MCS's business, profits, and obligations to its customers.	Email servers of MCS
Electronic documents concerning the subject matter of MCS's causes of action against MSC and MSC's defenses against MCS's causes of action, including the current service contract between MCS and MSC, the negotiation thereof, and MCS and MSC's respective performance thereunder; the booking, confirmation, tendering, and tracking of MCS's containers with respect to MSC, either directly or through ocean transportation intermediaries; the booking, confirmation, tendering, and tracking of MCS's containers with respect to other ocean freight carriers when not carried by MSC; spot market prices for ocean freight; the effects of MSC's failure to carry MCS cargo on MCS's business, profits, and obligations to its customers.	MCS corporate computer systems
Hard-copy documents (if any) concerning the subject matter of MCS's causes of action against MSC and MSC's defenses against MCS's causes of action, including the current service contract between MCS and MSC, the negotiation thereof, and MCS and MSC's respective performance thereunder; the booking, confirmation, and tendering of containers by MCS to MSC, either directly or through ocean transportation intermediaries; the booking, confirmation, and tendering of containers by MCS to other ocean freight carriers when not carried by MSC; spot market prices for ocean freight; the effects of MSC's failure to carry MCS cargo on MCS's business, profits, and obligations to its customers.	MCS offices

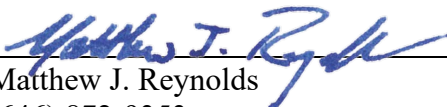
(3) An estimate of any damages claimed by the disclosing party who must also make available for inspection and copying the documents or other evidentiary material, unless privileged or protected from disclosure, on which the estimate is based, including materials bearing on the nature and extent of injuries suffered.

Category of Damages	Estimated Amount of Damages	Documents or Other Evidentiary Materials
MCS's costs for carriage of containers that MSC failed to carry in excess of MCS's contracted rates with MSC.	To be proven at trial; at least \$234,332 and continuing to accrue.	To be produced in discovery.
Profits lost by MCS due to MSC's failure to carry MCS's containers.	To be proven at trial and not ascertainable in full at this time due in part to the parties' ongoing course of dealing pursuant to their service contract.	To be produced in discovery.
Penalties incurred by MCS due to MSC's failure to carry MCS's containers.	To be proven at trial and not ascertainable in full at this time due in part to the parties' ongoing course of dealing pursuant to their service contract.	To be produced in discovery.

MCS reserves the right to supplement these initial disclosures to the extent necessary to comply with its obligations under the Federal Maritime Commission's Rules of Practice and Procedure.

Dated: September 2, 2021

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BEFORE THE FEDERAL MARITIME COMMISSION

MCS INDUSTRIES, INC.,

Complainant

v.

COSCO SHIPPING LINES CO., LTD. AND

MSC MEDITERRANEAN SHIPPING COMPANY S.A.,

Respondents.

DOCKET NO. 21-05

INITIAL DISCLOSURES OF RESPONDENT
MSC MEDITERRANEAN SHIPPING COMPANY S.A.

Respondent MSC Mediterranean Shipping Company S.A. (“MSC”), by and through undersigned counsel, makes the following initial disclosures pursuant to 46 CFR § 502.141(b):

1) The name of each individual likely to have discoverable information that the disclosing party may use to support its claims or defenses:

MSC has identified the below employees at MSC Qingdao, MSC Tianjin, MSC Xiamen and MSC USA who, in addition to those listed in the Initial Disclosures of Complainant MCS Industries, Inc. (“MCS”), have had communication with MCS or a booking agent or handling agent for MCS. Each of these parties can be contacted through undersigned counsel.

MSC USA	MSC Qingdao	MSC Tianjin	MSC Xiamen
Tom Hughes	Oscar Du	Mets Nip	Carol Li
Anna Kapica	Alex Yu	Tony Zheng	
Paolo Magnani	Kevin Zhang		
John Ruela			

MSC has also identified the following persons associated with or a booking agent or handling agent for MCS with which it has contact, in addition to those listed in the Initial

Disclosures of Complainant MCS: Jerry Jiang, Fuzhuo Liansheng freight forwarding, and Jie Li, Port town international shipping agency.

(2) A description by category and location of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and may use to support its claims or defenses:

The documents potentially relevant to the claims are internal email exchanges and exchanges with MCS and/or its booking or handling agents with respect to any bookings identified as subject to MCS' claims. These are maintained in Office 365 outlook systems and booking systems and databases maintained at MSC's offices in New York and overseas.

(3) An estimate of any damages claimed by the disclosing party.

MSC has suffered reputational damages in an as yet undermined amount as a result of MCS' unsupported and untrue, yet widely publicized, allegations that MSC has engaged in "collusion" and other misconduct. The Commission does not have jurisdiction to redress this damage, other than to award MSC the fees and costs it has incurred and will incur as a result of this proceeding, and MSC reserves all rights to assert those claims as appropriate in other fora.

MSC also reserves the right to supplement these disclosures by providing the names of additional individuals or document locations that it may learn in discovery.

Respectfully submitted,



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*Counsel for Respondent MSC Mediterranean
Shipping Company S.A.*

Date: September 7, 2021

CERTIFICATE OF SERVICE

I certify that on the 7th day of September 2021, a true and correct copy of the foregoing Initial Disclosures was served via electronic mail on the following:

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Counsel for Respondent COSCO Shipping Lines Co., Ltd.

/s/ John Longstreth

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY SA

**COMPLAINANT MCS INDUSTRIES, INC.'S RESPONSES AND OBJECTIONS TO
THE FIRST SET OF INTERROGATORIES AND FIRST REQUEST FOR
PRODUCTION OF DOCUMENTS OF
RESPONDENT MSC MEDITERRANEAN SHIPPING COMPANY SA**

Pursuant to Title 46 of the Code of Federal Regulations, Sections 502.145, 502.146 *et seq.* and 502.206, Complainant MCS Industries, Inc. (“MCS” or “Complainant”), by and through its undersigned attorneys, hereby serves its objections and responses to the First Set of Interrogatories (the “Interrogatories”) and First Request for Production of Documents Including Electronically Stored Information (the “Requests for Production”) of Respondent MSC Mediterranean Shipping Company S.A. (“MSC” or “Respondent”).

GENERAL OBJECTIONS

1. Complainant hereby incorporates the following General Objections and limitations into each of its responses to each of the Interrogatories and Requests for Production below. Each response to the Interrogatories and Requests for Production is made subject to, and without waiving, each of Complainant’s General Objections.

2. Complainant objects to the Interrogatories and Requests for Production, including each of the Definitions and Instructions, including sub parts, and each of the 9 Interrogatories and 10 Requests for Production, including sub parts, to the extent they seek to impose requirements

Name	Title (if known)	Address	Phone Number
Brittany Montesano	Logistics Analyst	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Steve McGowan	Chief Operating Officer	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Fayer Lee	Business Manager	MCS (Hong Kong) c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Greg Yocco	Chief Financial Officer	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Tom Marko	Director of IT	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Expeditors International of Washington, Inc.		1015 Third Ave, Seattle, WA 98104 (Corporate Headquarters)	206-674-3400

2. Identify each document you referred to in order to respond to these Interrogatories.

Complainant's Objections and Responses to Interrogatory 2: Complainant incorporates its General Objections and Objections to Definitions and Instructions as though fully set forth herein. Subject to and without waiving the foregoing objections, the documents referred to in order to respond to these Interrogatories consist of the documents previously produced to Respondent on October 7, 2021 (Bates numbered P000001 through P000042) and documents contained in Complainant's forthcoming production of documents.

3. Identify each person or entity with knowledge of the facts underlying MCS's claims against MSC.

Complainant's Objections and Responses to Interrogatory 3: Complainant incorporates its General Objections and Objections to Definitions and Instructions as though fully set forth herein. Subject to and without waiving the foregoing objections, to Complainant's knowledge, the persons and entities with knowledge of the facts underlying MCS's claims against MSC are:

Name	Title (if known)	Address	Telephone Number
Susan Schantzenbach	Director of Distribution	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Brittany Montesano	Logistics Analyst	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Steve McGowan	Chief Operating Officer	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Fayer Lee	Business Manager	MCS (Hong Kong) c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Erica Lai	Business Management Assistant	MCS (Hong Kong) c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Tiffany Judge	Materials Manager	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Greg Yocco	Chief Financial Officer	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Richard Master	Chief Executive Officer	MCS, c/o Huth Reynolds LLP, 41 Cannon Court, Huntington, NY 11743	212-731-9333
Thomas DeMarino	District Sales Manager	MSC, 160 Mt. Bethel Road, Warren, NJ 07059	908-210-3026
Anna Kapica	Import Far East Trade	MSC, 420 5th Avenue, New York, NY 10018	212-764-4800 x 42612
Chiara Ann Ciabatti	Import Director, Transpacific Trade	MSC, 420 5th Avenue, 8th Floor, New York, NY 10018-2702	212-764-4800
Dennis Ren	Coordinator – Trade & Sales	MSC, 38th Floor, Qingdao International Finance Center, 59 HongKong Mid. Road, Qingdao, China	86-532-89096095
Jack Feng		MSC, 34th floor, Tianxing Riverfront Square, No. 81 Shi Yi Jing Road, He Dong District, 300171, Tianjin City, China	022-22 24257515
Livy Lin		MSC, Unit 04, 07-09, 20 Floor, Zhonggeng Youth Plaza, No. 83 East Street, Gulou District, CN - 350001 Fuzhou, Fujian Province, China	86-591-8787-0748
Lindsey Pfeiffer	Account Manager/Manager, District Business Operations, Global Business Operations	Expeditors, 519 Kaiser Drive Suite A, Folcroft, PA 19032	856-625-6740

Name	Title (if known)	Address	Telephone Number
Holly Hai	Coordinator, Sales	Expeditors, 2510B Room, Fei Long Tian Run Mansion, No. 169 Yingchun Street, Laishan District, Yantai 264003, China	86-535-6580001
Jeff Du	Agent – Ocean Export, TSN	Expeditors, 5th Floor, Building W-14, Airport Business Park, No.76 HuanHeBei Street, Airport Economic Zone, Tianjin, China	86-22-5867-6000 ext. 300
Agnes Ye	Assistant Supervisor – Ocean Export Customer Service	Expeditors, Unit 906, 9th Floor, West Tower, Heng Li Prosperity Center, No. 69 Yingji Road, Fuzhou 350003, China	86-591-8754-5028
Ty “Summer” Li	Operation Department Operator	Shandong Smart International Logistics Co., Ltd., 17th Floor, Fudu Mansion, No.8 Nanjing Road, Qingdao, Shandong Province, China	86-532-87073286
Xiaotong “Lemon” Liu	Operation Department Operator	Shandong Smart International Logistics Co., Ltd., No. 358, Longgangshan Road, Economic Development Park, Qingdao, Shandong, 266071 China	86-532-87073299
Terry Zheng		Qingdao JET Marine Logistics Co., Ltd., 16F, Shandong International Trade Mansion, No.51 Taiping Rd, Qingdao, Shandong Province, China	86-532-82668811-111
Li Nan		PENAVICO, No.5 Xu Zhou Road, He Xi District, Tianjin, China	022-83326241
(Personnel potentially to be identified in discovery)		Fuzhou Port-Town International Shipping Agency, Ltd., Floor 8, Building B, Xinhua Square, No.173 Wusi Road, Gulou District, Fuzhou City, Fujian Province, China	0591-87383735

4. Identify each person or entity who acted as an ocean transportation agent or intermediary for any shipment that is subject of MCS’s claims against MSC.

Complainant’s Objections and Responses to Interrogatory 4: Complainant incorporates its General Objections and Objections to Definitions and Instructions as though fully set forth herein. Subject to and without waiving the foregoing objections, Expeditors acted as an authorized agent for MCS with respect to the dealings with MSC at issue in the Complaint. To Complainant’s knowledge, no other entities served as agents for MCS with respect to such dealings

with MSC, but other intermediaries that communicated with Complainant, Expeditors, and/or Respondent include Shandong Smart International Logistics Co., Ltd., Qingdao JET Marine Logistics Co., Ltd., PENAVICO, and Fuzhou Port-Town International Shipping Agency, Ltd.

5. Identify each MCS container or other cargo that MCS avers MSC did not carry in violation of the Service Contract or any other provision of law, including who booked the container or cargo, the date of booking, the date of tender if tender was made, the loading and discharge ports; the booking identification or other confirmation number; and the number of TEUs.

Complainant's Objections and Responses to Interrogatory 5: Complainant incorporates its General Objections and Objections to Definitions and Instructions as though fully set forth herein. Complainant further objects that Interrogatory 5 mischaracterizes and improperly narrows the allegations of the Complaint. Subject to and without waiving the foregoing objections, Complainant understands that the following booking requests and booking confirmations were cancelled:

- Booking confirmations 177OJNQN2543VFB, 177OJNQN2542VFB, and 177OJNQN2541VFB issued April 9, 2021 pursuant to booking requests 52Y0138368, 52Y0136421, and 52Y0136447, respectively, for the vessel Cap San Vincent.
- Request on May 8, 2021 to use still-pending booking confirmations 177OJNQN2543VFB, 177OJNQN2542VFB, and 177OJNQN2541VFB.
- Booking confirmations 177OJNQN4897VFB, 177OJNQN4896VFB, and 177OJNQN4895VFB issued July 8, 2021 pursuant to booking requests BK05160297, 52Y0136442, and 52Y0136457 for the vessel Cap San Juan.

- Booking confirmations 177OJNQNQ4917VFB, 177OJNQNQ4918VFB, and 177OJNQNQ4919VFB issued July 21, 2021 (subsequently re-booked for the vessel Maersk Guayaquil).

Additionally, after an appropriate protective order providing for the confidential treatment of information and documents is issued in this case pursuant to 46 C.F.R. § 502.141(j), Complainant will produce a document with the starting Bates number P000043 identifying the containers or cargo that MCS intended MSC to carry from Qingdao or Tianjin to Los Angeles pursuant to the current service contract between MCS and MSC during the months of May through July 2021, as well as the methods and costs of shipping those containers due to MSC's failure to allocate space to MCS pursuant to that service contract.

6. For each MCS container or other cargo that MCS avers MSC did not carry in violation of the Service Contract or any other provision of law, describe the actions MCS took to seek alternative carriage for such cargo or otherwise mitigate its alleged damages.

Complainant's Objections and Responses to Interrogatory 6: Complainant incorporates its General Objections and Objections to Definitions and Instructions as though fully set forth herein. Subject to and without waiving the foregoing objections, when Complainant and its agent Expeditors were not able to book space with Respondent, Complainant worked with its factory counterparts in China, local China forwarders, and Shippabo to find space for the cargo at the best possible market rates. Complainant selected the lowest available rate at the time it was necessary to move cargo.

7. Describe how MCS calculated the \$234,332 of alleged estimated "costs for carriage of containers that MSC failed to carry in excess of MCS's contracted rates with MSC," as represented in MCS's Initial Disclosures.

Exhibit “C”



July 14, 2021

Chairman Daniel B. Maffei
Federal Maritime Commission
800 North Capitol Street NW
Washington, DC 20573

Dear Chairman Maffei,

As you well know, U.S. consumers rely on a consistent flow of manufactured goods and services produced around the world. Ninety percent of international trade, 120 million shipping containers a year, is done via ocean freight. International steamship lines transport 11 million containers into U.S. ports alone. It's big business performed largely by non-U.S. companies—a point noted in President Biden's recent Executive Order on Promoting Competition in the American Economy, which stated that "the global container shipping industry has consolidated into a small number of dominant foreign-owned lines and alliances, which can disadvantage American exporters."

Top 10 International Shipping Companies ¹			
Ranking	Name	Country of Origin	Current Market Share
1	Maersk	Denmark	16.9%
2	Mediterranean Shipping Co. (MSC)	Switzerland	16.5%
3	CMA CGM	France	12.2%
4	China Ocean Supply Co. (COSCO)	China	12.2%
5	Hapag-Lloyd	Germany	7.2%
6	Ocean Network Express (ONE)	Japan	6.4%
7	Evergreen Line	Taiwan	5.5%
8	Hyundai Merchant Marine (HMM)	South Korea	3.4%
9	Yang Ming Marine Transport	Taiwan	2.5%
10	Wan Hai Lines	Taiwan	1.7%
		Total:	84.5%

As you also know, the Covid-19 pandemic has disrupted steamship line operations profoundly. Activities in and about ports throughout the world have been affected, from onboard crews and employment at ports, and dislocation of containers and vessels and delays in loading and unloading. Truck transport to and from ports have also been impacted, delaying the delivery of full containers and their return as empty back to the port. Strategic ports around the world have been shuttered and then reopened then shut down again from recent outbreaks.

¹ Source: Alphaliner TOP 100 as of July 13, 2021 (<https://alphaliner.axsmarine.com/PublicTop100/>).



To make matters worse, major foreign carriers have recently begun organizing themselves into collusive “alliances” to further concentrate market power. The three top carrier alliances (2M Alliance, THE Alliance, and Ocean Alliance) now control a **whopping 80 percent** of global container ship traffic.² The formation of these cartels has allowed foreign shipping interests to coordinate pricing and business practices, and take advantage of economic conditions to charge extortionate prices to U.S. customers.

The U.S. House Committee on Transportation and Infrastructure and its Subcommittee on Coast Guard and Maritime Transportation have been attentive to this issue, although more work is needed. In March T&I Members made a bipartisan request that the Commission take immediate action to ensure that ocean carriers are abiding by applicable federal laws, and, as you know, on June 15 they convened a hearing on “Impacts of Shipping Container Shortages, Delays, and Increased Demand on the North American Supply Chain”, which included testimony from you and your colleague, Commissioner Dye, as well as industry and labor representatives.

I have also noted the July 12 announcement of the Commission’s new Memorandum of Understanding with the Justice Department’s Antitrust Division to support interagency collaboration to enhance competition in the maritime industry. Since the issues I raise in this letter would appear to implicate American antitrust laws, I have taken the liberty of copying Acting Assistant Attorney General Richard Powers on this letter, as well.

Discussion of this issue to date appears to have focused primarily on congestion at ports and terminals and the effects of the resulting delays on U.S. exports, particularly in the agricultural sector. The disruption in ocean freight supply certainly has strained the U.S. economy in these ways, but I am writing you today to highlight the fact that there is a more ominous economic circumstance currently at play in the ocean freight marketplace. International steamship lines have been operating in tandem to exploit the Covid-19 disruption to profiteer at the expense of U.S. consumers. They have used the relative unavailability of services to create a frothing demand to exact exorbitant prices for their services. They now charge rates that have grown **seven to ten times** the prices charged two years ago. And further, they are not honoring contracts negotiated in good faith with American businesses for agreed-upon services and rates. There is no reasonable remedy at law for their failure to perform. They have the power, and in their world, a deal is no deal. Below I provide some examples of what American shippers have experienced in recent months.

² Source: American Journal of Transportation, April 19-May 9, 2021 (https://ajot.com/ajot_digital/724/?page=6).



Typical Contract Negotiated Pricing Available to a U.S. Shipper from Multiple International Steamship Lines

	2019-2020	2020-2021	2021-2022
East Coast (EC)	\$2,700.00	\$2,700.00	\$4,600.00
West Coast (WC)	\$1,700.00	\$1,700.00	\$3,300.00

Specifications:

- 40-foot high cube container
- Shipping from ports in China to the U.S. East Coast (EC) and West Coast (WC)
- May 1st – April 30th of the following year shipping timelines

Shipping contracts between steamship transport lines and shippers are negotiated in the first quarter of each year with performance to commence May 1, ending in April 30 of the following year. Contracts are drafted detailing the number of containers to be provided each month, locations of service and the price per container. Early in the pandemic, the steamship lines began to ***refuse previously contracted*** containers and space on their vessels. Instead of honoring their written contracts, they advised shippers to go into the “spot market” to secure service. The spot market over time became the major supplier of services taking space and containers in regularly scheduled vessels. From May 2020 through April 2021, shippers were forced into the spot market for fifty or more percent of their previously contracted requirements, all at higher rates. In the first quarter of 2021, with Covid-19 disruptions unabated, contracted negotiations for the following shipping year commenced. The transport lines exacted an eighty percent price increase for the 2021-2022 season. Shippers reluctantly agreed to these exorbitant prices, under the impression that they would secure space for critical shipping requirements. Enough was not enough. Spot market rates rose dramatically in May 2021 and the increases continued unabated. The carrier lines have brazenly ignored their contractual obligations, refusing to provide agreed-upon container space in order to take extortionate profits on the spot market. As a result, container rates that in 2019 and 2020 that were \$2,700.00 from China ports to the U.S. had grown above \$15,000.00 in July 2021—nearly a ***sixfold increase*** in the span of less than two years.

The repercussions of these increases to American consumers and to the U.S. economy are profound. As shipping costs are passed through to the consumer, retail price increases of 20-40% are commonplace. Hundreds of billions of dollars of additional shipping costs must be “passed through” and these numbers, at such proportions, to overall economic activity portend spiraling inflation if not brought under control. It bears emphasis that this is not “natural” inflation caused by the economic recovery or stimulus programs; instead, it is the direct result of cynical profiteering by international shipping cartels that have decided to use the Covid-19 pandemic to generate enormous revenue at the expense of the American public.



Clearly Congress, the White House, the Justice Department, and the Commission are all aware of the importance of this issue and the havoc that it is wreaking on American businesses and consumers. Federal shipping and antitrust laws appear to provide federal regulators with the tools needed to investigate this outrageous conduct by ocean carriers. But action must be taken quickly to mitigate the harm that such conduct is inflicting right now, on a daily basis, on American businesses and consumers. To that end, I am writing to ask you to take prompt action on the following fronts:

1. All shipping contracts negotiated between U.S. shippers and foreign steamship lines must be honored according to their terms. The lines must supply the containers they agreed to supply or pay reparations, and potentially face other adverse action by the Commission, for their failure to do so.
2. The dislocation of shipping containers internationally – too many empties in the U.S. and not enough in Asia - overly congested U.S. ports, denying the return of empty containers, all collectively further constrain the ability of steamship lines to perform their work. These conditions must be addressed and corrected by both the steamship lines and the ports. The Commission should intercede to ensure that corrective actions are implemented and enforced.
3. There are serious coordination issues in the operation of the U.S. ports. Truckers performing drayage service, delivering full containers to shippers and receivers must be able to schedule normal appointments to avoid current untenable delays. Steamship lines currently levy penalties on the U.S. shippers for the delays which are beyond their control. In addition, truckers have been unable to secure appointments to return the empty containers, again resulting in penalties to receivers. These penalties, which are ultimately borne by American consumers in the form of consumer price inflation, must stop.

I welcome the opportunity to discuss these matters further with you or the appropriate policy officials at the Commission, and I would be happy to partner with you in whatever way possible to address the issues that I have identified in this letter. Thank you for your time, attention, and service to American businesses that rely on overseas shipping.

Sincerely,

Richard Master, CEO
MCS Industries Inc.
Easton, PA 18045
(610)-253-6268 x 6903
(610)-393-4957 Cell

Corporate Headquarters

2280 Newlins Mill Road, Easton, PA 18045 > Fax: (610) 253-3039 > Phone: (610) 253-6268 / (800) 833-3058



cc: Richard Powers, Acting Assistant Attorney General, U.S. Department of Justice, Antitrust Division
Hon. Matthew Cartwright, United States House of Representatives
Hon. Susan Wild, United States House of Representatives

Exhibit “D”

PRESS RELEASE
FOR IMMEDIATE RELEASE
July 29, 2021

Contact: Andrew Feldman, Andrew@feldmanstrategies.com, 781-820-6650

**MCS INDUSTRIES FILES FEDERAL COMPLAINT AGAINST FOREIGN OCEAN
FREIGHT CARRIERS FOR PROFITEERING AND ABUSIVE PRACTICES**

EASTON – MCS Industries, Inc., the U.S. market leader for picture frames, poster frames, mirrors, wall décor, and architectural and decorative moldings for home construction and home improvement markets, today filed a complaint with the Federal Maritime Commission in Washington, D.C. against two of the world’s six largest ocean freight carriers, alleging that the two carriers have violated U.S. federal law by flagrantly breaching their agreements and engaging in profiteering at the expense of U.S. shippers and their customers.

The ocean freight carriers named in the complaint are China-based COSCO SHIPPING Lines Co., Ltd. and Switzerland-based Mediterranean Shipping Company SA. These shipping giants participate in two of the three global alliances of foreign carriers that collectively control over 90 percent of all transpacific trade.

The complaint filed by MCS’s counsel at Huth Reynolds LLP alleges that the carriers have taken actions to prop up and increase prices for ocean freight, in particular since the beginning of the COVID-19 pandemic. As alleged in the complaint, the actions taken by carriers have included making “blank sailings” to artificially limit capacity and prop up prices. Carriers have also refused to offer sufficient space in advance to allow shippers to lock in predictable rates, and have reneged on contracts in order to force shippers to buy exorbitantly expensive capacity on the “spot market”. This pattern of conduct has allowed foreign carriers to massively increase profitability, reporting profits in early 2021 that are *thirty to fifty times higher* than profits in the same period in 2020.

Richard Master, the founder and CEO of MCS Industries, explains: “Early in the pandemic, the steamship lines began to refuse previously contracted containers and space on their vessels. Instead of honoring their written contracts, they advised shippers to go into the ‘spot market’ to secure service. The spot market over time became the major supplier of services taking space and containers in regularly scheduled vessels. From May 2020 through April 2021, shippers were forced into the spot market for fifty or more percent of their previously contracted requirements, all at higher rates. In the first quarter of 2021, negotiations for the current shipping year commenced. The transport lines exacted price increases ranging up to eighty percent for the 2021-2022 season. Shippers reluctantly agreed to these exorbitant prices, under the impression that they would secure space for critical shipping requirements. Enough was not enough. Spot market rates rose dramatically in May 2021 and the increases continue unabated. The carrier lines have brazenly ignored their contractual obligations, refusing to provide previously agreed-upon container space in order to take extortionate profits on the spot market. As a result, container rates that in 2019 and 2020 were \$2,700.00 from China ports to the U.S. have grown above \$15,000.00 in July 2021—nearly a *sixfold increase* in the span of less than two years.”

“These foreign carriers have discovered that they can make billions of dollars by breaching their contracts and forcing shippers like MCS to pay enormous spot market prices to keep the flow of goods going. The money currently allowing the foreign carriers to make record-setting profits is coming directly from the pockets of American businesses and consumers. It threatens American businesses, and it drives up inflation for everyone. At MCS, we believe we have a responsibility to our employees and our customers to fight back against these gigantic foreign alliances and say ‘enough is enough’. We hope the Federal Maritime Commission will step in to stop this abusive behavior and protect the American economy from runaway inflation caused by foreign profiteering.”

The complaint alleges that the freight carriers have violated U.S. federal law by engaging in unjust and unreasonable shipping practices, violating their contracts, unfairly discriminating in their treatment of MCS, and by refusing to deal. The alleged damages already amount to several hundred thousand dollars, and continue to grow. The carriers have not yet filed any response to the complaint.

“These foreign megacarriers absolutely dominate the transpacific trade routes, and they’re making billions of dollars by forcing shippers into the spot market at exorbitant prices. They obviously won’t stop out of the good of their hearts. It is not easy to stand up to bullies, but this has gone too far. We at MCS are willing to take the first step, and we hope we can count on other American businesses, as well as our government, to stand with us and protect American businesses and consumers. The stakes are too high to let this kind of price-gouging become the new normal,” added Master.

The U.S. government has begun to take preliminary actions, with Congress requesting action by the Federal Maritime Commission and convening a hearing on the effects of current shipping conditions on the North American supply chain, but more urgent action is needed. Building on President Biden’s recent Executive Order on Promoting Competition in the American Economy, which specifically noted the threat posed by consolidation among foreign-owned shipping lines, on July 12, the Federal Maritime Commission announced it had entered into a Memorandum of Understanding with the U.S. Department of Justice’s Antitrust Division to support interagency collaboration concerning competitive issues in the maritime industry. Likewise, on July 14, MCS Industries sent a letter to Federal Maritime Commission Chairman Daniel B. Maffei, urging the Commission to intervene in order to protect U.S. consumers from the runaway inflation caused by the carriers’ profiteering.

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About MCS Industries, Inc.

MCS, a home décor manufacturing company headquartered in Easton, Pennsylvania, is the leading supplier of quality mirrors, frames and wall décor to retailers throughout the world, with four distribution centers throughout the United States. For more information, see <https://www.mcsindustries.com/about-us/>

Exhibit “E”

Date	Activity	Refer to
4/8	Expeditors Qingdao sent first booking with new contract number for ETD 4.26 vessel because Expeditors knew the vessel would be delay to May.	Refer to Image #1
4/9	Got the BK# 177OJNQN2543VFB/177OJNQN2542VFB/177OJNQN2541VFB, vessel CAP SAN VINCENT 112N, ETA Qingdao port is 4/26	Refer to Image #2
4/15	Expeditors push MSC agent for space and asked them to move it to another vessel if above vessel is not available.	Refer to Image #3
4/29	No space released, Expeditors updated the status Thomas from MSC and asked for the space issues.	
4/29	Brittany asked Thomas on the space issue and Thomas said he would push for it	Refer to Image #4
5/8	Sent new bookings to MSC/agent and asked if we can still use the pending BK#177OJNQN2543VFB/177OJNQN2542VFB/177OJNQN2541VFB,the agent replied Expeditors" still checking"	Refer to Image #5
5/17	Expeditors pushed again but no feedbacks	Refer to Image #6
5/20	Susan pushed Thomas from MSC again and Thomas said "would revert"	Refer to Image #7
June - July	Expeditors asked agent on the contract allocation for several times but they replied they need to check with MSC	
7/8	MSC gave 3 booking confirmation and told EI the vessel is "CAP SAN JUAN/128N ETD:7.18"	Refer to Image #8
7/13	MSC replied that the space cannot be released yet.	Refer to Image #9
7/21	MSC gave 3 new booking confirmation(177OJNQN4917VFB /177OJNQN4918VFB /177OJNQN4919VFB)and told EI the vessel is with ETD 7/28, but on 7/29 MSC said the earliest vessel is with ETD 8/18	Refer to Image #10
7/29	MSC said the earliest vessel is with ETD 8/18.	
8/10	MSC said blank sailing but released 3F with transshipment.	
8/18	Arranged the 3F for booking (177OJNQN4917VFB /177OJNQN4918VFB /177OJNQN4919VFB) - MAERSK GUAYAQUIL 133N ETD 8/18, ETD delayed to 9/10	
8/25	MSC released 3F space	
9/1	MSC released 3F space, ETD delayed to 9/14	
9/8	MSC blank sailing	
9/10	Released 6F with ETD 9/15	
9/15	Released 3F with ETD 9/23	

Image #1

From: Holly Hai
Date: 2021-04-08 16:47
To: xiaotong.liu
Subject: New booking to MCS---ETD 4.26
 Hi Xiaotong,

Pls kindly help to book with MSC as below shipping plan as ETD 26APR.

We have no new contract number of 2021 so can you please help to check with MSC if we can submit the booking now?

1. 52Y0138368---1*20GP---LGB
2. 52Y0136421---3*20GP---LGB
3. 52Y0136447---1*40HQ---LGB

Holly Hai
Coordinator, Sales

Office 86-535-6580001
Fax 86-532-857555021
Mobile 86-18106386058
Email holly.hai@expeditors.com

Expeditors

Expeditors, Yantai
2204 Room, Fei Long Tian Run Mansion
No.169 Yingchun Street, Laishan District, Yantai 264003, China

Image #2

发件人: xiaotong.liu <xiaotong.liu@sdsmartlogistics.com>
发送时间: 2021年4月9日 11:07
收件人: Holly Hai <holly.hai@expeditors.com>
主题: [SUSPECTED SPAM]Re: New booking to MCS---ETD 4.26 177OJNQN2541VFB---2543VFB订舱信息

[EXTERNAL EMAIL] DO NOT CLICK links or attachments unless you recognize the sender and know the content is safe.

Dear ,

CAP SAN VINCENT 112N的预计到港日 (ETA) 调整为04/26/2021

1. 52Y0138368---1*20GP---LGB--177OJNQN2543VFB
2. 52Y0136421---3*20GP---LGB--177OJNQN2542VFB
3. 52Y0136447---1*40HQ---LGB--177OJNQN2541VFB

Tks & B.rgds
Operation Department Operator
Lemon Liu
Tel: 0086-532-87073299
MOL: 152 6927 0482
QQ:3001496535
E-mail: xiaotong.liu@sdsmartlogistics.com
NAME: 山东捷丰国际储运有限公司
SHANDONG SMART INTERNATIONAL LOGISTICS CO., LTD
地址: 山东省青岛市市南区南京路8号府都大厦12楼
公众微信号: sdsmartwx



Image #3

发件人: Holly Hai
发送时间: 2021-04-14 15:25
收件人: xiaotong.liu
主题: 答复: [SUSPECTED SPAM]Re: New booking to MCS---ETD 4.26 1770JNQN2541VFB---2543VFB订舱信息
亲, 要是4月份没仓位了, 就直接定5月第一周的吧。谢谢

Holly Hai
Coordinator, Sales

Office 86-535-6580001
Fax 86-532-857555021
Mobile 86-18106386058
Email holly.hai@expeditors.com

Expeditors

Expeditors, Yantai
2510B Room, Fei Long Tian Run Mansion
No.169 Yingchun Street, Laishan District, Yantai 264003, China

Translation:
If no space for Apr, please book for
the 1st week of May. Thank you.

Image #4

From: thomas.demarino@msc.com <thomas.demarino@msc.com>
Sent: Thursday, April 29, 2021 8:40 AM
To: Brittany Montesano <bbell@mcsframe.com>; agnes.ye@expeditors.com; Jeff.Du@expeditors.com; holly.hai@expeditors.com
Cc: erica.lai@mcsframe.com.hk; Susan Schantzenbach <sschantz@mcsframe.com>; Tiffany Judge <tjudge@mcsframe.com>; fayer.lee@mcsframe.com.hk
Subject: Re: MSC BOOKINGS- URGENT

I am told they would be notified. Still pending ad of this moment. I' m pushing but the situation is what it is. Another push sent again this morning for confirmation

Thomas DeMarino
District Sales Manager
Mediterranean Shipping Co.
(908) 210-3026

From: Brittany Montesano <bbell@mcsframe.com>
Sent: Thursday, April 29, 2021 8:35:23 AM
To: Agnes Ye <agnes.ye@expeditors.com>; Thomas Demarino (MSC USA) <thomas.demarino@msc.com>; Jeff Du <Jeff.Du@expeditors.com>; Holly Hai <holly.hai@expeditors.com>
Cc: erica.lai@mcsframe.com.hk <erica.lai@mcsframe.com.hk>; Susan Schantzenbach <sschantz@mcsframe.com>; Tiffany Judge <tjudge@mcsframe.com>; Fayer Lee <fayer.lee@mcsframe.com.hk>
Subject: MSC BOOKINGS- URGENT

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Good Morning Tom,

Per our call on Tuesday you were hoping to have information back to me by this morning. Please share with the team as the space promised per week is not being accepted for the first week of May / any of May that I am aware of at this time.

FUZHOU TO LA- 1FEU PER WEEK
QINGDAO TO LA- 3 FEU PER WEEK
TIANIN TO LA- 3 FEU PER WEEK.

Image #5

发件人: ty.li@sdsmartlogistics.com <ty.li@sdsmartlogistics.com>
发送时间: 2021年5月8日 14:05
收件人: Holly Hai <holly.hai@expeditors.com>
主题: Re: 转发: [SUSPECTED SPAM]Re: New booking to MCS---ETD 5月份帮忙出具

Translation:
Ok, Still working on it

[EXTERNAL EMAIL] DO NOT CLICK links or attachments unless you recognize the sender and know the content is safe.

Dear ,

好的 正在落实

Tks & B.rgds

李亭豫 Summer Li
Operation Department Operator
Smart International Logistics.

Image #6

发件人: Holly Hai <holly.hai@expeditors.com>
收件人: ty.li@sdsmartlogistics.com <ty.li@sdsmartlogistics.com>
时间: 2021年5月17日 (周一) 15:44 🕒
大小: 183 KB

Translation:
Any news?

亲，还没有消息吗？

Holly Hai
Coordinator, Sales

Office 86-535-6580001

Fax 86-532-857555021
Mobile 86-18106386058
Email holly.hai@expeditors.com

Expeditors

Image #7

thomas.demarino@msc.com

发给 SSchantz@mcsframe.com, tjudge@mcsframe.com, fayer.lee@mcsframe.com.hk

发件人: thomas.demarino@msc.com <thomas.demarino@msc.com>

收件人: SSchantz@mcsframe.com <SSchantz@mcsframe.com>

抄送: tjudge@mcsframe.com <tjudge@mcsframe.com>, fayer.lee@mcsframe.com.hk <fayer.lee@mcsframe.com.hk>

时间: 2021年5月24日 (周一) 22:19

大小: 30 KB

Understand. I'm trying to get some definitive answers.

Thomas DeMarino
District Sales Manager
Mediterranean Shipping Co.
(908)210-3026

From: Susan Schantzenbach <SSchantz@mcsframe.com>

Sent: Monday, May 24, 2021 9:35:57 AM

To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>

Cc: Tiffany Judge <tjudge@mcsframe.com>; fayer.lee@mcsframe.com.hk <fayer.lee@mcsframe.com.hk>

Subject: RE: MCS INDUSTRIES- URGENT- BOOKINGS NEEDED - URGENT!!!

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Thomas,
Any updates yet? We need to understand what's going on in order to plan!

Sue

Waiting on vessel management. Will revert

From: Susan Schantzenbach <[SSchantz@mcsframe.com](mailto:sschantz@mcsframe.com)>
Sent: Friday, May 21, 2021 1:56:51 PM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Cc: Tiffany Judge <tjudge@mcsframe.com>; 'Fayer Lee' <fayer.lee@mcsframe.com.hk>
Subject: RE: MCS INDUSTRIES- URGENT- BOOKINGS NEEDED

Thomas,
Any updates on this?

From: Susan Schantzenbach
Sent: Thursday, May 20, 2021 5:03 PM
To: 'thomas.demarino@msc.com' <thomas.demarino@msc.com>
Cc: Tiffany Judge <tjudge@mcsframe.com>; 'Fayer Lee' <fayer.lee@mcsframe.com.hk>
Subject: MCS INDUSTRIES- URGENT- BOOKINGS NEEDED
Importance: High

Please advise, thank you.
Sue



Lane	Contracted YEARLY FEU	MSC
Fuzhou to LA	52 FEUs	1 FEUs
Qingdao to LA	780 FEUs	3 FEUs
Tianjin to LA	156 FEUs	3 FEUs

Image #8

↩ ty.li@sds martlogistics.com Re: Re: New booking to MCS---ETD 7.14--52Y0136457-1*40H-LAX 2021/7/9 (周五) 11:39
[EXTERNAL EMAIL] DO NOT CLICK links or attachments unless you recognize the sender and know the content is safe. Dear ,
这个船名航次是CAP SAN JUAN/128N ETD:7.18~ Tks & B.rgds DT约订舱后不允许退仓、推航次、更改箱型箱量, [REDACTED] 如背箱/指箱号后未出运, 收取全额海运费。

ty.li@sds martlogistics.com Re: New booking to MCS---ETD 7.14--BK05160297--2*20GP--LAX 2021/7/8 (周四) 16:48
[EXTERNAL EMAIL] DO NOT CLICK links or attachments unless you recognize the sender and know the content is safe. Dear ,
1770JNQN4897VFB Tks & B.rgds DT约订舱后不允许退仓、推航次、更改箱型箱量, [REDACTED] 如背箱/指箱号后未出运, 收取全额海运费+1000USD/CNR的费用, 请

→ ty.li@sds martlogistics.com Re: New booking to MCS---ETD 7.14--52Y0136442-1*40H-LAX 2021/7/8 (周四) 16:48
[EXTERNAL EMAIL] DO NOT CLICK links or attachments unless you recognize the sender and know the content is safe. Dear ,
1770JNQN4896VFB Tks & B.rgds DT约订舱后不允许退仓、推航次、更改箱型箱量, [REDACTED] 如背箱/指箱号后未出运, 收取全额海运费+1000USD/CNR的费用, 请

ty.li@sds martlogistics.com Re: New booking to MCS---ETD 7.14--52Y0136457-1*40H-LAX 2021/7/8 (周四) 16:47
[EXTERNAL EMAIL] DO NOT CLICK links or attachments unless you recognize the sender and know the content is safe. Dear ,
1770JNQN4895VFB Tks & B.rgds DT约订舱后不允许退仓、推航次、更改箱型箱量, [REDACTED] 如背箱/指箱号后未出运, 收取全额海运费+1000USD/CNR的费用, 请

Image #9

Re: 答复: New booking to MCS---ETD 7.14--52Y0136457-1*40H-LAX

ty.li@sds martlogistics.com

发给 Holly Hai

发件人: ty.li@sds martlogistics.com<ty.li@sds martlogistics.com>

收件人: Holly Hai<holly.hai@expeditors.com>

时间: 2021年7月13日 (周二) 13:34

大小: 69 KB

[EXTERNAL EMAIL] DO NOT CLICK links or attachments unless you recognize the sender and know the content is safe.

Dear ,

销售没给解锁, 舱保 还在落实~

Tks & B.rgds

TRANSLATION:↵

The sales has not unlocked the space, the spacing is still pending.↵

↵

Tks & B.rgds ↵

For DT contract, once it's booked, it is not allowed to cancel the booking, push the vessel or change the container size or number, otherwise there will be a fee of 1000USD/CNR; if the empty container has already picked up from the port or container number already generated, but the container has finally not been shipped, the full sea freight +1000USD/CNR will be charged. please be sure to confirm before arranging the booking.↵

↵

ins@sigus

DT约订舱后不允许退仓、推航次、更改箱型箱量， 如背箱/指箱号后未出运， 请务必确认好再安排订舱。

李亭豫 Summer Li
Operation Department Operator
Smart International Logistics.

☎: +86-532-87073286
: +86 13173272171

E-mail: ty.li@sdsmartlogistics.com

Image #10

Re: 答复: New booking to MCS---ETD 7.28--52Y0136457-1*40H-LAX



ty.li@sdsmartlogistics.com
收件人 ● Holly Hai

📌 答复此邮件的时间为 2021/7/29 11:13。

↩ 答复 ↩ 全部答复 → 转发

2021/7/21 (周三)

[EXTERNAL EMAIL] DO NOT CLICK links or attachments unless you recognize the sender and know the content is safe.

Dear ,

1770JNJNQ4917VFB
1770JNJNQ4918VFB
1770JNJNQ4919VFB

Exhibit “F”

Date	Communication Method	Booking Request #	Qty	Equipment	Origin Port	Destination Port	Booking #	Vessel	ETD	Result
4/8/2021	e-mail	52Y0138368	1	20' GP	Qingdao	LGB	177OJNJNQ2543VFB	Cap San Vincent	4/26/2021	No space given by MSC
4/8/2021	e-mail	52Y0136421	3	20' GP	Qingdao	LGB	177OJNJNQ2542VFB	Cap San Vincent	4/26/2021	No space given by MSC
4/8/2021	e-mail	52Y0136447	1	40 HQ	Qingdao	LGB	177OJNJNQ2541VFB	Cap San Vincent	4/26/2021	No space given by MSC
7/8/2021	e-mail	52Y0136457	1	40 HQ	Qingdao	LAX			7/14/2021	No space given by MSC
7/8/2021	e-mail	52Y0136442	1	40 HQ	Qingdao	LAX			7/14/2021	No space given by MSC
7/8/2021	e-mail	BK05160297	2	20' GP	Qingdao	LAX			7/14/2021	No space given by MSC
7/9/2021	e-mail	52Y0136457	2	1 40 HQ	Qingdao	LAX			7/14/2021	No space given by MSC

Exhibit “G”

RE: Requests Pending Customer Signature

From: Susan Schantzenbach <sschantz@mcsframe.com>
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Date: Tue, 08 Jun 2021 10:31:30 -0400

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Yes please!

From: thomas.demarino@msc.com <thomas.demarino@msc.com>
Sent: Tuesday, June 8, 2021 10:25 AM
To: Susan Schantzenbach <SSchantz@mcsframe.com>
Subject: RE: Requests Pending Customer Signature

Probably went to Brittany ON Sign now... I'll have it sent to you...

TD

Sensitivity: Internal

From: Susan Schantzenbach <SSchantz@mcsframe.com>
Sent: Tuesday, June 8, 2021 10:22 AM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Subject: RE: Requests Pending Customer Signature

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

What amendment?

From: thomas.demarino@msc.com <thomas.demarino@msc.com>
Sent: Tuesday, June 8, 2021 10:19 AM
To: Brittany Montesano <bbell@mcsframe.com>; Susan Schantzenbach <SSchantz@mcsframe.com>
Subject: FW: Requests Pending Customer Signature

Seems there is a pending amendment awaiting signature?

TD

Sensitivity: Internal

From: Megan Palazzo (MSC USA) <megan.palazzo@msc.com>
Sent: Tuesday, June 8, 2021 10:01 AM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Cc: Megan Palazzo (MSC USA) <megan.palazzo@msc.com>
Subject: Requests Pending Customer Signature

Good Day,

Please check with the customer if this will be signed or if the amendment should be cancelled.
Thank you!

Customer	SVC #	AMN #	Date Sent to Customer	Trade
MCS INDUSTRIES INC.	21-104TPC	1	6/1/2021 1:50:23 PM	FAR EAST TO USA

Megan Palazzo

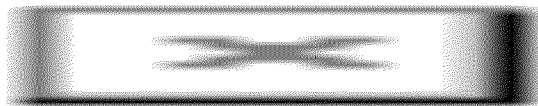
Service Contracts Quality Control Manager

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

700 Watermark Blvd., Mt. Pleasant, SC 29464 USA

T: +1 843 971 4100 F: +1 843 971 6952 W: WWW.MSC.COM

As agent for MSC Mediterranean Shipping Company S.A., Geneva



Sensitivity: Internal

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Sensitivity: Internal

Exhibit “H”

From: Holly Hai <holly.hai@expeditors.com>
Sent: Thursday, August 5, 2021 9:40 PM
To: Terry Zheng <msc-seataocn@jms-logistics.com>
Cc: dennis.ren <dennis.ren@msc.com>
Subject: 答复: 订舱--WEEK AP guidance---MSC--WEEK34 AP--MSC: 21-104TPC

Hi Terry,
请先给下BOOKING#.

Hi Dennis,
WK34周后我们通过经汉订舱，请知悉，谢谢！ *[Translation: “WK 34 weeks later, we will book through Jinghan, please know, thank you!”]*

Holly Hai
Coordinator, Sales

Office 86-535-6580001
Fax 86-532-857555021
Mobile 86-18106386058
Email holly.hai@expeditors.com


Expeditors, Yantai
2510B Room, Fei Long Tian Run Mansion
No.169 Yingchun Street, Laishan District, Yantai 264003, China
www.expeditors.com

发件人: Holly Hai
发送时间: 2021年8月5日 15:50
收件人: 'Terry Zheng' <msc-seataocn@jms-logistics.com>
主题: 订舱--WEEK AP guidance---MSC--WEEK34 AP--MSC: 21-104TPC

Hi Terry,
请查收订舱，定如下船期。

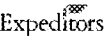
6*20GP
WEEK34 AP

WEEK35以及之后的船期有了麻烦帮忙发一下，我好发订舱计划。谢谢
我们每周都是3F的量，请知悉。

M/V	VOY	QINGDAO				2ND VSL	VOY	ETD T/S PORT	LONG BEACH	Oakland
		CY/CUT	Clear Customs-Cut	ETA	ETD				ETA	ETA
MAERSK ALFIRK	2104E	22-Aug-2021 14:00	23-Aug-2021 12:00	23-Aug-2021 19:00	25-Aug-2021 07:00	Direct Call			13-Sep	18-Sep

Holly Hai
Coordinator, Sales

Office 86-535-6580001
Fax 86-532-857555021
Mobile 86-18106386058
Email holly.hai@expeditors.com


Expeditors, Yantai
2510B Room, Fei Long Tian Run Mansion
No.169 Yingchun Street, Laishan District, Yantai 264003, China
www.expeditors.com

[EXTERNAL EMAIL] DO NOT CLICK links or attachments unless you recognize the sender and know the content is safe.

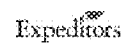
WK34 订舱得给我托书哈 TKS~

ORIENT SERVICE										Aug-2021	
M/V	VOY	QINGDAO				2ND VSL	VOY	ETD T/S PORT	LONG BEACH	Oakland	
		CY/CUT	Clear Customs-Cut	ETA	ETD				ETA	ETA	
MAERSK ALFIRK	2104E	22-Aug-2021 14:00	23-Aug-2021 12:00	23-Aug-2021 19:00	25-Aug-2021 07:00	Direct Call			13-Sep	18-Sep	

* All business of this Company is undertaken strictly in accordance with its Standard Trading Conditions (copies available on request or on the Company's website-[Standard Trading Terms](#)) and which, in certain cases, exclude or limit the Company's liability and include certain indemnities benefiting the Company.

如下约号，每周3F的舱保。
根据电话沟通，烦请先将ETD 25这个船名发给我吧，请告知这个属于WK多少？
后面我们根据WEEK AP 来订舱。谢谢！

Office 86-535-6580001
Fax 86-532-857555021
Mobile 86-18106386058
Email holly.hai@expeditors.com



Expeditors, Yantai

2510B Room, Fei Long Tian Run Mansion

No.169 Yingchun Street, Laishan District, Yantai 264003, China

www.expeditors.com

Exhibit “I”

RE: MCS INDUSTRIES - MQC AWARD

From: Brittany Montesano <bbell@mcsframe.com>
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Date: Mon, 29 Mar 2021 11:46:05 -0400

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Yes thank you for taking the time to do this! We appreciate it as we want weekly space ☺ Please file so we can get a contract number to origin to begin booking for May asap

From: thomas.demarino@msc.com <thomas.demarino@msc.com>
Sent: Monday, March 29, 2021 11:43 AM
To: Brittany Montesano <bbell@mcsframe.com>
Subject: RE: MCS INDUSTRIES - MQC AWARD

In Order to get the weekly allocation I revised below... Hope this will work... 728 teu...

Port_of_Disc harge	POD_Re gion	Rates_Valid _From	Rates_Vali d_To	Number_of_Week_of_Cont ract_Period	Total Nominatio n_Teu	Weekly Nominatio n_Teu
Long Beach (USLGB)	USA WC (PSW)	1/May/2021	30/Apr/20 22	52	104	2
Long Beach (USLGB)	USA WC (PSW)	1/May/2021	30/Apr/20 22	52	312	6
Long Beach (USLGB)	USA WC IPI via PSW	1/May/2021	30/Apr/20 22	52	312	6

Sensitivity: Internal

From: Brittany Montesano <bbell@mcsframe.com>
Sent: Wednesday, March 24, 2021 1:24 PM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Cc: Susan Schantzenbach <SSchantz@mcsframe.com>
Subject: RE: MCS INDUSTRIES - MQC AWARD

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

We can make your suggestions work.

Last year we could have shipped DOUBLE our MQC but if you recall we were not getting space at our contracted rates and had to take an increase to even try to get some. We are not tracking to hit it for the current contract year. MCS had to partner with multiple freight forwarders and use market rates just to get

freight to the US. I hope they will not be disappointment as we are disappointed in the performance of our contract last year but are willing to sign a new one this year!

From: thomas.demarino@msc.com <thomas.demarino@msc.com>
Sent: Wednesday, March 24, 2021 1:14 PM
To: Brittany Montesano <bbell@mcsframe.com>
Cc: Susan Schantzenbach <sschantz@mcsframe.com>
Subject: RE: MCS INDUSTRIES - MQC AWARD

I would suggest the below to protect weekly allocation...

Lane	MSC	
Fuzhou to LA	48 TEUs	would suggest 78 for 1.5 per week
Qingdao to LA	300 TEUs	Would suggest 312 for 6 per week
Tianjin to LA	312 TEUs	Ok 6 per week
Total Allocation	660 TEUs	702 TEU

Last year we had 1400 so this will disappoint trades but so be it... Let me know...

TD

Sensitivity: Internal

From: Brittany Montesano <bbell@mcsframe.com>
Sent: Wednesday, March 24, 2021 1:01 PM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Cc: Susan Schantzenbach <sschantz@mcsframe.com>
Subject: RE: MCS INDUSTRIES - MQC AWARD

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hello Tom,

We are happy to be signing with MSC again!!

I could only make the below MQC quantities work. We will use the rates WITH CHASSIS. Please make sure it does read the 10 days free off port that we discussed.

- Please note the MAJORITY of what we will be booking with MSC out of Qingdao will be on 20GP as we move cut glass that weighs out before it cubes out. Please confirm this type of Equipment is OK to assume we will have access to weekly.
- Please read my notes below especially for Fuzhou as I am only assigning what my system is forecasting which keyword in that is forecast 😊

Lane	MSC	EXPECTATION
Fuzhou to LA	48 TEUs	This origin is a mix of 20GP and 40GP/40H. You have moved this lane in the past- according to our forecast it appears not every week will have a shipment.--- Do you suggest raising the MQC any to take into account for this??
Qingdao to LA	300 TEUs	6 20GP per week- occasionally will be booking 40's but the initial plan is for you to handle all of our glass shipments
Tianjin to LA	312 TEUs	3 40GP/ 40H per week
Total Allocation	660 TEUs	

Please send the contract asap as we would like to get it signed to you so our factories can start booking for May.

Thanks,

Brittany Montesano
MCS Industries, Inc.
2280 Newlins Mill Road
Easton, PA 18045
610-253-6268 ext 6962

From: thomas.demarino@msc.com <thomas.demarino@msc.com>
Sent: Tuesday, March 23, 2021 10:27 AM
To: Brittany Montesano <bbell@mcsframe.com>
Subject: Re: MCS INDUSTRIES

Hoping for at least 1400 if possible.

Thomas DeMarino
District Sales Manager
Mediterranean Shipping Co.
(908)210-3026

From: Brittany Montesano <bbell@mcsframe.com>
Sent: Tuesday, March 23, 2021 10:18:34 AM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Subject: RE: MCS INDUSTRIES

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Thank you! I will use this in determining the allocation for MSC this year!

From: thomas.demarino@msc.com <thomas.demarino@msc.com>
Sent: Tuesday, March 23, 2021 9:57 AM
To: Brittany Montesano <bbell@mcsframe.com>
Subject: RE: MCS INDUSTRIES

Good news

Liner confirmed 10 free days per Diem.

For 10 days chassis the amount will be [REDACTED]

For comparison before for 7 days was added to all in rate: [REDACTED]

TD

Sensitivity: Internal

From: Brittany Montesano <bbell@mcsframe.com>
Sent: Monday, March 22, 2021 4:44 PM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Subject: RE: MCS INDUSTRIES

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hello Tom,

Did you hear on the free time yet?

Really hoping to get all of my contracts figured out, need this missing information o see if I can fit in MSC to our carrier mix.

From: thomas.demarino@msc.com <thomas.demarino@msc.com>
Sent: Friday, March 19, 2021 5:45 PM
To: Brittany Montesano <bbell@mcsframe.com>
Subject: RE: MCS INDUSTRIES

Rates same... perdiem remains at 195... Working on confirmation of the 10 days free time... will know Monday..

TD

Sensitivity: Internal

From: Brittany Montesano <bbell@mcsframe.com>
Sent: Friday, March 19, 2021 5:00 PM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Subject: RE: MCS INDUSTRIES

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hello Tom,

Hoping to get an update- do you think you will have information back for me today or should I be expecting something Monday. I will be working at this all weekend.

From: Brittany Montesano
Sent: Friday, March 19, 2021 11:39 AM
To: 'thomas.demarino@msc.com' <thomas.demarino@msc.com>
Subject: MCS INDUSTRIES

Hello Tom,

Email is back up! I would like to follow-up on our conversation earlier this week.

Was atleast 10 days free time off port approved?
Was any flat per diem rate approved?
Any rate reductions that you were going to look into?
Was there a min or max MQC?

I am going to be gathering all responses today from the steamship lines and see which lanes I could assign after comparing all the rates/ free time/ per diem charges/ port calls etc that is going into our decision this year.

Thanks,

Brittany Montesano
MCS Industries, Inc.
2280 Newlins Mill Road
Easton, PA 18045
610-253-6268 ext 6962

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MCS Industries, Inc.
2280 Newlins Mill Road
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Sensitivity: Internal

RE: MCS INDUSTRIES

To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Cc: John Ruela (MSC USA) <john.ruela@msc.com>
Date: Thu, 01 Apr 2021 20:21:09 -0400

Hello Tom,
So we get half this year. They have not paid any premium so was thought to get space
We would need to put 1 teu for Fuzhou lane in commitment file or perhaps they can increase a bit
Fuzhou

Anna Kapica
Import Far East Trade

MSC MEDITERRANEAN SHIPPING COMPANY (USA) INC.

420 Fifth Avenue, New York, NY, 10018 USA
T: +1 212 764 4800 x 42612 **F:** +212-827-1636 **W:** www.msc.com
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Kindly make sure the banner is hyperlinked to our Seafood **landing page**:
<https://www.msc.com/seafood>

Lastly, here is the [link](#) to the **MSC Reefer Cargo – Seafood video**.

From: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Sent: Thursday, March 25, 2021 3:16 PM
To: Anna Kapica (MSC USA) <anna.kapica@msc.com>
Cc: John Ruela (MSC USA) <john.ruela@msc.com>
Subject: RE: MCS INDUSTRIES

Look like we will get a reward although less than last year... You can see their explanation below...
Below is the reward...

Lane	MSC	
Fuzhou to LA	78 TEUs	1.5 per week
Qingdao to LA	312 TEUs	6 per week
Tianjin to LA	312 TEUs	6 per week

Total Allocation	702 TEUs	13.5 PER WEEK
------------------	-------------	---------------

I advised we were hoping to do at least 1400 as this year and below their response

From: Brittany Montesano bbell@mcsframe.com
Sent: Wednesday, March 24, 2021 1:24 PM
To: Thomas Demarino (MSC USA) thomas.demarino@msc.com
Cc: Susan Schantzenbach sschantz@mcsframe.com
Subject: RE: MCS INDUSTRIES - MQC AWARD

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Last year we could have shipped DOUBLE our MQC but if you recall we were not getting space at our contracted rates and had to take an increase to even try to get some. We are not tracking to hit it for the current contract year. MCS had to partner with multiple freight forwarders and use market rates just to get freight to the US. I hope they will not be disappointment as we are disappointed in the performance of our contract last year but are willing to sign a new one this year!

td

Sensitivity: Internal

From: Anna Kapica (MSC USA) <anna.kapica@msc.com>
Sent: Tuesday, March 23, 2021 9:24 AM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Subject: RE: MCS INDUSTRIES

Hello Tom,
Good news
Liner confirmed 10 free days per Diem.
For 10 days chassis the amount will be [REDACTED]
For comparison before for 7 days was added to all in rate: [REDACTED]

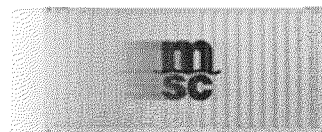
Anna Kapica
Import Far East Trade

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Sensitivity: Internal

From: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Sent: Monday, March 22, 2021 5:09 PM
To: Anna Kapica (MSC USA) <anna.kapica@msc.com>
Subject: Re: MCS INDUSTRIES

Ok will do. I'd hate to lose this account. Bad for my numbers

Thomas DeMarino
District Sales Manager
Mediterranean Shipping Co.
(908)210-3026

From: Anna Kapica (MSC USA) <anna.kapica@msc.com>
Sent: Monday, March 22, 2021 4:59:25 PM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Subject: RE: MCS INDUSTRIES

I want to try one more time and blame it on Covid, please wait till tomorrow

Anna Kapica
Import Far East Trade

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Sensitivity: Internal

From: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Sent: Monday, March 22, 2021 4:58 PM

To: Anna Kapica (MSC USA) <anna.kapica@msc.com>
Subject: Re: MCS INDUSTRIES

We will probably not be awarded this year. We offered 7 correct?

Thomas DeMarino
District Sales Manager
Mediterranean Shipping Co.
(908)210-3026

From: Anna Kapica (MSC USA) <anna.kapica@msc.com>
Sent: Monday, March 22, 2021 4:56:04 PM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Subject: RE: MCS INDUSTRIES

Hello Tom,
Unfortunately GVA didn't agree on 10 days. They are reducing the free time for everybody. Please advise what account will say.

Anna Kapica
Import Far East Trade

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Sensitivity: Internal

From: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Sent: Monday, March 22, 2021 4:47 PM
To: Anna Kapica (MSC USA) <anna.kapica@msc.com>
Subject: FW: MCS INDUSTRIES

Anna can you advise on the 10 days to wrap this up?

TD

Sensitivity: Internal

From: Brittany Montesano <bbell@mcsframe.com>
Sent: Monday, March 22, 2021 4:44 PM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Subject: RE: MCS INDUSTRIES

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hello Tom,

Did you hear on the free time yet?

Really hoping to get all of my contracts figured out, need this missing information o see if I can fit in MSC to our carrier mix.

From: thomas.demarino@msc.com <thomas.demarino@msc.com>
Sent: Friday, March 19, 2021 5:45 PM
To: Brittany Montesano <bbell@mcsframe.com>
Subject: RE: MCS INDUSTRIES

Rates same... perdiem remains at 195... Working on confirmation of the 10 days free time... will know Monday..

TD

Sensitivity: Internal

From: Brittany Montesano <bbell@mcsframe.com>
Sent: Friday, March 19, 2021 5:00 PM
To: Thomas Demarino (MSC USA) <thomas.demarino@msc.com>
Subject: RE: MCS INDUSTRIES

CAUTION: External email. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hello Tom,

Hoping to get an update- do you think you will have information back for me today or should I be expecting something Monday. I will be working at this all weekend.

From: Brittany Montesano
Sent: Friday, March 19, 2021 11:39 AM
To: 'thomas.demarino@msc.com' <thomas.demarino@msc.com>
Subject: MCS INDUSTRIES

Hello Tom,

Email is back up! I would like to follow-up on our conversation earlier this week.

Was atleast 10 days free time off port approved?
Was any flat per diem rate approved?
Any rate reductions that you were going to look into?
Was there a min or max MQC?

I am going to be gathering all responses today from the steamship lines and see which lanes I could assign after comparing all the rates/ free time/ per diem charges/ port calls etc that is going into our decision this year.

Thanks,

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Exhibit “J”

	A	B	C	D	E	F	G	H
1	ORIENT Leg 1				QINGDAO		NINGBO	
2					CNTAOQQ[N]		CNNGBAS[N]	
3					QINGDAO QIANWAN CONTAI...		GANGJI TERMINAL (PHASE...	
4	Exported 2021-Jul-19 19:29:00				A: MON	D: WED	A: SAT	D: SUN
5	PROFORMA: ORIENT 73 - V2							
6	MAERSK ALTAIR				2101W-2102E			
7	2102E	2102W		Proforma	17/05 19:00	19/05 07:00		
8	No delay.			Live	19/05 13:11	20/05 23:50		
9	MAERSK EVORA				113S-121N			
10	121N	124S		Proforma	24/05 19:00	26/05 07:00		
11	28D-23H:04M delay			Live	14/06 21:07	16/06 08:50		
12	MAERSK ALFIRK				2102W-2103E			
13	2103E	2103W		Proforma	31/05 19:00	02/06 07:00		
14	36D-22H:30M delay			Live	24/06 20:42	26/06 12:45		
15	CAP SAN VINCENT				115S-126N			
16	126N	129S		Proforma	28/06 19:00	30/06 07:00		
17	12D-12H:30M delay			Live	05/07 18:00	07/07 07:33		
18	GERNER MAERSK				116S-127N		127N-127N	
19	127N	130S		Proforma	05/07 19:00	07/07 07:00	10/07 14:15	11/07 17:45
20	12D-18H:30M delay			Live	10/07 15:30	12/07 06:00	14/07 12:45	15/07 14:00
21					QINGDAO		NINGBO	
22					CNTAOQQ[N]		CNNGBAS[N]	
23					QINGDAO QIANWAN CONTAI...		GANGJI TERMINAL (PHASE...	
24					A: MON	D: WED	A: SAT	D: SUN
25	PROFORMA: ORIENT 74 - V4							
26	CAP SAN JUAN				117S-128N		128N-128N	
27	128N	131S		Proforma	12/07 19:00	14/07 07:00	17/07 14:00	18/07 17:30
28	03D-17H:00M delay			Live	17/07 12:30	19/07 03:30	21/07 07:00	22/07 10:30
29	MAERSK ALTAIR				2102W-2103E			
30	2103E	2103W		Proforma	19/07 19:00	21/07 07:00		
31	04D-00H:00M delay			Live	23/07 19:00	25/07 07:00		
32	MAERSK EVORA				124S-133N			
33	133N	136S		Proforma	16/08 19:00	18/08 07:00		
34	No delay.			Live	16/08 19:00	18/08 07:00		
35	MAERSK ALFIRK				2103W-2104E			
36	2104E	2104W		Proforma	23/08 19:00	25/08 07:00		

美西：Maple 航线（USWC）

目的地名称	船名	日期	日期	日期	船名	船名	日期	日期	日期
MSC GENOVA 地中海热那亚	QXI22W	2-Jun	4-Jun	7-Jun	NORTHERN JULIE	UM124N	2-Jul	13-Jul	17-Jul
MAERSK HUACHO 马士基瓦乔	123W	9-Jun	11-Jun	14-Jun	NORTHERN JULIE	UM124N	2-Jul	13-Jul	17-Jul
MAERSK HIDALGO 马士基伊达尔戈	124W	16-Jun	18-Jun	21-Jun	NORTHERN JAMBOREE	UM125N	9-Jul	20-Jul	25-Jul
MAERSK HONG KONG 马士基香港	125W	23-Jun	25-Jun	28-Jun	RDO CONCEPTION	126N	11-Jul	21-Jul	26-Jul

美西：CHINOOK 航线（USWC） 2

目的地名称	船名	日期	日期	日期	船名	船名	日期	日期
MSC GENOVA 地中海热那亚	QXI22W	2-Jun	4-Jun	7-Jun	TBN	UK123A	-	-
MAERSK HUACHO 马士基瓦乔	123W	9-Jun	11-Jun	14-Jun	MSC Aby	UK124A	16-Jun	26-Jun
MAERSK HIDALGO 马士基伊达尔戈	124W	16-Jun	18-Jun	21-Jun	TBN	UK125A		
MAERSK HONG KONG 马士基香港	125W	23-Jun	25-Jun	28-Jun	MSC VILDA	UK126A	1-Jul	11-Jul

美西：ORIENT 航线

目的地名称	船名	日期	日期	船名	船名	日期	日期	日期
MSC TARANTO 地中海塔兰托	FY122A	2-Jun	4-Jun	CAP SAN VINCENT	126N	8-Jul	19-Jul	24-Jul

美西：Sequoia 航线

目的地名称	船名	日期	日期	船名	船名	日期	日期
MSC TARANTO 地中海塔兰托	FY122A	2-Jun	4-Jun	MSC LIVORNO	US124N	26-Jun	10-Jul
MSC LUCIANA 地中海卢西安娜	FY123A	9-Jun	11-Jun	MSC SAVONA	US125N	4-Jul	17-Jul

MSC IVANA 地中海伊凡娜	FY124A	16-Jun	18-Jun	MSC ARIES	US126N	8-Jul	22-Jul
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美西：EAGLE 航线（USWC）

目的地名称	船名	日期	日期	日期	目的地名称	船名	日期	日期	日期
MSC GENOVA 地中海热那亚	QX122W	2-Jun	4-Jun	7-Jun	ZIM NINGBO	70N	29-Jun	10-Jul	14-Jul
MAERSK HUACHO 马士基瓦乔	123W	9-Jun	11-Jun	14-Jun	ANNA MAERSK	125N	9-Jul	20-Jul	24-Jul
MAERSK HIDALGO 马士基伊达尔戈	124W	16-Jun	18-Jun	21-Jun	ANNA MAERSK	125N	9-Jul	20-Jul	24-Jul
MAERSK HONG KONG 马士基香港	125W	23-Jun	25-Jun	28-Jun	ZIM SAN DIEGO	54N	13-Jul	24-Jul	29-Jul
MAERSK HANOI 马士基河内	126W	30-Jun	2-Jul	5-Jul	MAERSK SINGAPORE	127N	28-Jul	8-Aug	12-Aug

美西：ROSE 航线（USWC）

目的地名称	船名	日期	日期	目的地名称	船名	日期	日期	日期	日期
MSC TARANTO 地中海塔兰托	FY122A	2-Jun	4-Jun	SM Qingdao	2104E	17-Jun	29-Jun	2-Jul	4-Jul
MSC LUCIANA 地中海卢西安娜	FY123A	9-Jun	11-Jun	SM Qingdao	2104E	17-Jun	29-Jun	2-Jul	4-Jul
MSC IVANA 地中海伊凡娜	FY124A	16-Jun	18-Jun	SCHUBERT	2105E	24-Jun	6-Jul	9-Jul	11-Jul
MSC FAITH 地中海费思	FY125A	23-Jun	25-Jun	SM MUMBAI	2105E	1-Jul	13-Jul	16-Jul	18-Jul

美东：Empire 航线（EC2）

目的地名称	船名	日期	日期	日期	目的地名称	船名	日期	日期	日期	日期
MSC GENOVA 地中海热那亚	QX122W	2-Jun	4-Jun	7-Jun	MAERSK EDINBURGH	124E	27-Jun	21-Jul	24-Jul	28-Jul
MAERSK HUACHO 马士基瓦乔	123W	9-Jun	11-Jun	14-Jun	GUDRUN MAERSK	125E	4-Jul	28-Jul	31-Jul	4-Aug
MAERSK HIDALGO 马士基伊达尔戈	124W	16-Jun	18-Jun	21-Jun	GUNVOR MAERSK	126E	11-Jul	4-Aug	7-Aug	11-Aug
MAERSK HONG KONG 马士基香港	125W	23-Jun	25-Jun	28-Jun	GJERTRUD MAERSK	127E	18-Jul	11-Aug	14-Aug	18-Aug

美东：Lone Star Express 航线（USEC-5）

目的地/港口名称	船名	船期	船期	船名	船期	船期	船期	船期	船期	船期	船期	船期
目的地/港口名称	船名	船期	船期	船名	船期	船期	船期	船期	船期	船期	船期	船期
MSC GENOVA 地中海热那亚	QX122W	2-Jun	4-Jun	7-Jun	MAERSK SUPERIOR	122E	27-Jun	21-Jul	24-Jul	27-Jul	30-Jul	31-Jul
MAERSK HUACHO 马士基瓦乔	123W	9-Jun	11-Jun	14-Jun	MSC DAMLA	FR126E	9-Jul	2-Aug	4-Aug	9-Aug	12-Aug	13-Aug

美东：Emerald 航线（USEC-4）

目的地/港口名称	船名	船期	船期	船名	船期	船期	船期	船期	船期	船期	船期
目的地/港口名称	船名	船期	船期	船名	船期	船期	船期	船期	船期	船期	船期
MSC TARANTO 地中海塔兰托	FY122A	2-Jun	4-Jun	ALBERT MAERSK	124E	24-Jun	15-Jul	19-Jul	23-Jul	-	28-Jul
MSC LUCIANA 地中海卢西安娜	FY123A	9-Jun	11-Jun	MAERSK SIRAC	125E	1-Jul	22-Jul	26-Jul	30-Jul	-	4-Aug
MSC IVANA 地中海伊凡娜	FY124A	16-Jun	18-Jun	ARCHIMIDIS	UL126E	8-Jul	29-Jul	2-Aug	6-Aug	-	11-Aug
MSC FAITH 地中海费恩	FY125A	23-Jun	25-Jun	BREMEN	UL127E	21-Jul	10-Aug	14-Aug	18-Aug	-	20-Aug

美东：America 航线（USEC-1）

目的地/港口名称	船名	船期	船期	船名	船期	船期	船期	船期	船期	船期	船期
目的地/港口名称	船名	船期	船期	船名	船期	船期	船期	船期	船期	船期	船期
MSC TARANTO 地中海塔兰托	FY122A	2-Jun	4-Jun	MAERSK STADELHORN	126W	6-Jul	31-Jul	6-Aug	9-Aug	11-Aug	13-Aug
											14-Aug

美东：Amberjack航线（USEC-3）

目的地/港口名称	船名	船期	船期	船名	船期	船期	船期	船期	船期	船期
目的地/港口名称	船名	船期	船期	船名	船期	船期	船期	船期	船期	船期
MUMBAI MAERSK 孟买马士基	122W	1-Jun	2-Jun	ZIM ANTWERP	60E	13-Jun	7-Jul	9-Jul	11-Jul	12-Jul
MAREN MAERSK 美恩马士基	123W	8-Jun	9-Jun	ADONIS	19E	20-Jun	14-Jul	16-Jul	18-Jul	19-Jul
MORTEN MAERSK 美腾马士基	124W	15-Jun	16-Jun	CAPE AKRITAS	9E	27-Jun	21-Jul	23-Jul	25-Jul	26-Jul

MARIBO MAERSK 美博马士基	125W	22-Jun	23-Jun	SANTA LORETTA	12E	4-Jul	28-Jul	30-Jul	1-Aug	2-Aug
MAASTRICHT MAERSK 马斯特里赫特马士	126W	29-Jun	30-Jun	CAPE KORTIA	9E	11-Jul	4-Aug	6-Aug	8-Aug	9-Aug
MURCIA MAERSK 穆尔西亚马士基	127W	6-Jul	7-Jul	SANTA LINEA	14E	18-Jul	11-Aug	13-Aug	15-Aug	16-Aug

Pelican 航线

目的地/船名	船名	日期	日期	日期	目的地/船名	日期	日期	日期
目的地/船名	船名	日期	日期	日期	目的地/船名	日期	日期	日期
MSC GENOVA 地中海热那亚	QXI122W	2-Jun	4-Jun	7-Jun	YORK	124E	25-Jun	24-Jul
MAERSK HUACHO 马士基瓦乔	123W	9-Jun	11-Jun	14-Jun	MSC LUISA	QP125E	3-Jul	31-Jul
MAERSK HIDALGO 马士基伊达尔戈	124W	16-Jun	18-Jun	21-Jun	MAERSK TAURUS	126E	9-Jul	7-Aug
MAERSK HONG KONG 马士基香港	125W	23-Jun	25-Jun	28-Jun	GSL Christen	127E	16-Jul	14-Aug

1. 以上船期仅供参考, 如有更正请以最新船期为准。The above schedule is for reference only and subject to change with/without prior notice.
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* Kindly note that AMS must be filed 24 hours before vessel ETA
* The above schedule is for reference only and subject to change with/without prior notice.
* Schedules are also available on our web-site: www.msc.com
3. 上表中之转运时间、转运港口、开船时间、航线安排仅供参考, 不构成任何要约或承诺, 不构成运输合同或服务合同的内容:
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